



**Ontario Clean Water Agency**

**Request for Bids**

**For**

**Waterloo Grounds Maintenance**

**Request for Bids No.: RFB25-106**

**Issued: 2025-11-24**

**Bid Submission Deadline: 2026-01-09 at 12:00 p.m. noon**

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## **Part 1 – Introduction**

### **1.1 Invitation to Bidders**

This Request for Bids ("RFB") is an invitation to prospective bidders ("Bidders") to submit bids ("Bids") for the provision of grounds maintenance, lawn care and snow removal services at the Waterloo area wastewater treatment plants as further described in Part 2 - The Deliverables (the "Deliverables"). This RFB is issued by the Ontario Clean Water Agency ("OCWA").

### **1.2 Type of Contract for Deliverables**

The successful Bidder will be required to enter into an agreement with OCWA for the provision of the Deliverables in the form attached as Appendix A to this RFB (the "Agreement"). It is OCWA's intention to enter into an Agreement with one legal entity. The term of the Agreement will be for a period of two years, with an option in favour of OCWA to extend the Agreement on the same terms and conditions for an additional term of up to two years. Any Agreement extensions and renewal pricing must be mutually agreed upon by both parties. It is anticipated that the Agreement will be executed on or around February 15, 2026. The Agreement start date is May 1, 2026.

A Bidder who submits conditions, options, variations or contingent statements to the terms set out in the Agreement, either as part of its Bid or after receiving notice of selection, may be disqualified.

#### **1.2.1 Building Ontario Businesses Initiative**

The provisions in section 4 of Appendix E of the RFB set out requirements related to the Building Ontario Businesses Initiative. Bidders are advised that they must take these provisions into account when preparing and submitting their Bids.

#### **1.2.2 Procurement Restriction Policy – U.S. Businesses**

The provisions in section 5 of Appendix E of the RFB set out requirements related to the Procurement Restriction Policy. Bidders are advised that they must take these provisions into account when preparing and submitting their Bids. A Bidder's eligibility must be demonstrated before a Bid may be accepted. The Bidder must not be a U.S. Business, as defined in Section 1.6.

### **1.3 No Guarantee of Volume of Work or Exclusivity of Contract**

OCWA makes no guarantee of the value or volume of work to be assigned to the successful Bidder. The Agreement executed with the successful Bidder will not be an exclusive contract for the provision of the described Deliverables. OCWA may contract with others for the same or similar Deliverables to those described in this RFB or may obtain the same or similar Deliverables internally.

## 1.4 Trade Agreements

Bidders should note that procurements falling within the scope of:

- (a) Chapter 5 - Government Procurement of the Canadian Free Trade Agreement ("CFTA");
- (b) Chapter 9 – Public Procurement of the Trade and Cooperation Agreement between Ontario and Quebec ("OQTCA");
- (c) The World Trade Organization's (WTO) Revised Agreement on Government Procurement between the Government of Canada and the Government of the United States of America ("GPA"); or
- (d) Chapter 19 – Government Procurement of the Canada-European Union Comprehensive Economic and Trade Agreement ("CETA")

are subject, respectively, to that chapter or those agreements. For further reference, please see: (for the CFTA) the Internal Trade Secretariat (<https://www.cfta-alec.ca/>) website; (for Ontario/Quebec) the Ontario Ministry of Economic Development and Growth (<https://www.ontario.ca/document/trade-and-cooperation-agreement-between-ontario-and-quebec-0>) website; (for the GPA) the WTO ([https://www.wto.org/english/docs\\_e/legal\\_e/rev-gpr-94\\_01\\_e.htm](https://www.wto.org/english/docs_e/legal_e/rev-gpr-94_01_e.htm)) website; and (for CETA) the Global Affairs Canada (<https://www.international.gc.ca/trade-commerce/trade-agreements-accords-commerciaux/agr-acc/ceta-aecg/text-texte/19.aspx?lang=eng>) website.

## 1.5 Accessibility Obligations

The Province of Ontario is committed to the highest possible standard for accessibility. Supplier(s) are responsible for complying with the requirements under the Ontario Human Rights Code (HRC), the Ontarians with Disabilities Act, 2001 (ODA) and the Accessibility for Ontarians with Disabilities Act, 2005 (AODA) and its regulations. In circumstances where Suppliers are providing a service to the public on behalf of OCWA, they may need to follow OCWA direction to ensure OCWA compliance with the AODA and its regulations (such as the Accessibility Standards for Customer Service, and the Integrated Accessibility Standards Regulation).

## 1.6 Definitions

Unless otherwise specified in this RFB, capitalized words and phrases have the meaning set out in the Agreement.

**“Agreement”** means the Agreement between OCWA and the successful Bidder and includes all schedules attached hereto from time to time.

**“Bidder”** means an individual, sole proprietorship, corporation, partnership, joint venture, incorporated consortium or consortium that is a partnership or other legally recognized entity which submits a Bid in response to this RFB.

**“Bid”** means the Bid and any required clarifications submitted by the Bidder in response to this RFB.

**“Business Day”** means Monday to Friday inclusive, other than a day that is observed as a statutory holiday in the Province of Ontario.

**“Conflict of Interest”** includes, but is not limited to, any situation or circumstance where:

- (a) in relation to the RFB process, the Bidder has an unfair advantage or engages in conduct, directly or indirectly, that may give it an unfair advantage, including having or having had access to information in the preparation of its Bid that is confidential to OCWA and not available to other Bidders, communicating with any person with a view to influencing preferred treatment in the RFB process or engaging in conduct that compromises or could be seen to compromise the integrity of the open and competitive RFB process and render that process non-competitive and unfair; or
- (b) in relation to the performance of obligations under the Agreement, the Bidder’s other commitments, relationships or financial interests could be or could be seen to exercise an improper influence over the objective, unbiased and impartial exercise of its independent judgment; or could be seen to compromise, impair or be incompatible with the effective performance of the services.

**“Deliverables”** means all goods, services and work to be provided or performed by the successful Bidder, and includes everything that is necessary to be done, supplied or delivered by the successful Bidder and its personnel as delineated in Part 2 of this RFB.

**“Facility”** means those listed in Section 2.3 Deliverables (each a Facility, and together the Facilities).

**“FIPPA”** means the *Freedom of Information and Protection of Privacy Act*.

**“Form of Offer”** means the form contained in Appendix B of this RFB.

**“MECP”** means Ministry of the Environment, Conservation and Parks.

**“Municipality”** means Regional Municipality of Waterloo.

**“OCWA”** means the Ontario Clean Water Agency.

**“OCWA Representative”** means an OCWA Senior Operations Manager or their designate.

**“Personal Information”** means recorded information about an identifiable individual or that may identify an individual.

**“PS”** means Pumping Station.

**“Reference Form”** means the form contained in Appendix G of this RFB.

**“RFB”** means this Request for Bids and any addenda issued thereto.

**“RFB Contact”** means Graham Allen, who can be reached at [procurement@ocwa.com](mailto:procurement@ocwa.com).

**“Term”** has the meaning set forth in the Agreement.

**“TS.”** means Transfer Station.

**“US Business”** means a supplier, manufacturer, service provider, or distributor of any business structure (includes a sole proprietorship, partnership, corporation, or other business structure) that:

1. Has its headquarters or main office located in the U.S., and
2. Has fewer than 250 full-time employees in Canada at the time of this procurement.

If a Bidder is a subsidiary of another corporation, part 1 of the definition above is met if that Bidder is controlled by a corporation that has its headquarters or main office located in the U.S.

**“VPM”** means Vendor Performance Management.

**“WSIB”** means the Workplace Safety and Insurance Board.

**“WWTP”** means Waste Water Treatment Plant.

[End of Part 1]

## Part 2 - The Deliverables

### 2.1 Purpose

OCWA is interested in retaining the services required to provide grounds maintenance, lawn care and snow removal services at the Facilities, as further described in Section 2.3 below in accordance with the terms of this RFB.

**NOTE:** A mandatory site tour of the Facility will be conducted for all Bidders who will be submitting a Bid. **Attendance at all tour facilities is mandatory.** Bidders who submit a Bid but did not attend all of the tours listed below will be disqualified.

**Please meet at the Ayr WWTP at 1292 Nith Road, Ayr, Ontario N0B 1E0 at 9:00 AM on December 5, 2025 to begin the tour.** From there the group will travel to the remaining Facilities. Bidders are requested to email their intention to attend to [procurement@ocwa.com](mailto:procurement@ocwa.com) by December 3, 2025.

All Bidders attending tours must provide and wear their own personal protective equipment (steel toe footwear, reflective safety vests, safety glasses and hard hats must be worn at the Facility).

All Bidders must arrive on time and stay for the entire duration of the mandatory site tour. Failure to do so may result in disqualification.

### 2.2 OCWA Background

OCWA provides a comprehensive range of reliable, cost-effective and environmentally responsible water and wastewater services to clients, including Ontario municipalities and private sector entities. Our core business is operations and maintenance. We operate facilities ranging from small well systems and lagoons to large water and wastewater systems serving millions of people. OCWA delivers these water and wastewater services through full-service contracts in which OCWA supplies labour and management, incurs the operational and maintenance expenses, and ensures cost efficiency, product quality and regulatory compliance.

### 2.3 Deliverables

The Waterloo Region Wastewater facilities are comprised of thirteen wastewater treatment plants, and eight remote pump stations which includes elevated tanks, administrative buildings and the surrounding grounds including lawns, parking lots, roads and pathways (the "Facilities").

The locations for service are:

| Facility       | Address                         |
|----------------|---------------------------------|
| Ayr WWTP       | 1292 Nith Road, Ayr             |
| Conestoga WWTP | 420 Golf Course Road, Conestoga |

|                          |                                                 |
|--------------------------|-------------------------------------------------|
| Elmira WWTP              | 80 First Street, East, Elmira                   |
| Foxboro WWTP             | 87 Foxboro Drive, Baden                         |
| Galt WWTP                | 230 Water Street, South, Cambridge              |
| Heidelberg WWTP          | 5 Alpen Grove, Heidelberg                       |
| Hespeler WWTP            | 900 Beaverdale Road, Cambridge                  |
| Kitchener WWTP           | 368 Mill Park Drive, Kitchener                  |
| New Hamburg WWTP         | 1293 Haysville Road, New Hamburg                |
| Preston WWTP             | 395 Montrose Street, South, Cambridge           |
| St. Jacobs WWTP          | 49 Water Street, South, St. Jacobs              |
| Waterloo WWTP            | 340 University Avenue, Waterloo                 |
| Wellesley WWTP           | 2156 Gerber Road, Township of Wilmot            |
| Baden PS                 | Regional Road. 51(at Foundry), Baden            |
| Bridgeport PS            | 21 Carisbrook Drive, Kitchener                  |
| Manitou Transfer Station | 440 Manitou Drive, Kitchener                    |
| Morningside PS           | 37 West Morningside Crescent, New Hamburg       |
| Nith River PS            | 111 Nith River Way, (Douglas Dr.-Broom St.) Ayr |
| Rose PS                  | 10 Rose St., (Rose Street at Water St.) Ayr     |
| Spring Valley PS         | 375 Riverbend Drive (at Arnold) Kitchener       |
| Swan Street PS           | 1061 Swan Street, Ayr                           |

### **Information Applicable to all Deliverables**

While generally the season for grounds maintenance is from April 1<sup>st</sup> to October 31<sup>st</sup>, and snow clearing is from November 1<sup>st</sup> to March 30<sup>th</sup> annually, services may be required at other times (for example, if it snows in April, snow removal will be required at that time and should be included in the price). These timelines are for guidance only; services will be required year round.

At any time during this contract, the successful Bidder must be able to respond and be on-site within four hours for an emergency grounds maintenance situation (e.g. a fallen tree blocking access to a Facility) and be able to respond and be on-site within two hours for emergency snow clearing activities.



The successful Bidder must ensure that an adequate number of supervisors are provided on-site to supervise the successful Bidder's staff and subcontractors and that any supervisor appointed by the successful Bidder satisfies the definition of "competent" as prescribed by the *Occupational Health and Safety Act*.

## **GROUNDS MAINTENANCE**

The Bidder will cut all areas of lawn on at least a bi-weekly basis. When the growth rate is excessive due to weather conditions, cutting must be done as necessary to maintain an aesthetically-pleasing appearance. Grass will be cut to an optimal height of no less than 2-inches high. Grass and weeds around building structures, trees, and along both sides of fence lines will be trimmed to provide a finished appearance to all Facilities. In practice, this has usually required a weekly cutting through the spring and early summer.

Please note that the lawn will only be maintained on both sides of the fence if the areas on both sides of the fence are regularly maintained grass. Where equipment, debris, uneven ground, intrusion of shrubs and trees prevent the use of manual equipment, grass should be maintained by hand to prevent overgrowth. Any specific concerns should be addressed with the OCWA Representative well as the Operations Manager to ensure they are addressed before the growth becomes unmanageable.

In addition to lawn care, the successful Bidder shall provide the following grounds maintenance services.

The following items are included in the base Bid in Table #1 in Appendix C (Rate Bid Form):

- a) keep all shrub beds weed-free (hand pull the weeds) around Administration buildings;
- b) grass and weeds around building sidewalks, curbs, other raised structures/assets, buildings, trees, grating and walkways, and along both sides of fence lines must be trimmed to provide a finished appearance to all Facilities;
- c) immediately following the completion of lawn care, the sidewalks, parking lots, entrance ways must be blown clear of clippings to prevent tracking into interior areas;
- d) as required, remove and control all weeds and vegetation from Facility substations, and stone covered areas using an environmentally safe chemical approved by OCWA prior to use. Entry into high-voltage areas must be performed by a qualified and competent staff member, who will be accompanied and escorted by an OCWA representative;
- e) clean up and disposal of all downed branches throughout the properties;
- f) Removal of weeds, tree litter and gravel from French drains and storm drains;
- g) Spring and Fall clean up, which includes:
  - a. remove winter debris on grass areas, including leaves, garbage sand and gravel accumulation;

- b. remove all debris and leaves along the fence lines and buildings before the first snowfall;
  - c. repair of any tire ruts
- h) regular garbage pick-up on Facility grounds to maintain the appearance of the Facilities in a clean and attractive manner, which includes removal of any visible garbage during routine visits.

### **Other Important Notes Regarding Grounds Maintenance**

- a) No refuelling of any equipment will be permitted on grass areas.
- b) OCWA will work closely with the successful Bidder to maintain grounds maintenance activities in areas undergoing construction. In order to accommodate construction activities, frequent modifications and alterations to the grounds maintenance services may be negotiated with the Bidder.
- c) In addition to the basic grounds maintenance, the successful Bidder shall maintain new landscaping. Extra attention must be given to general grounds cleanliness including disposal of any refuse found on the grounds.
- d) All work beyond the scope of services provided in the Agreement will require a quotation for service and approval from OCWA's Representative.
- e) Organic debris collected during facility cleanup shall be removed from all Facilities and properly disposed of by the successful Bidder.
- f) The successful Bidder will be required to have access to a certified arborist to provide advice on tree maintenance, cutting, trimming and care. Tree maintenance activities will be required upon request, such as pruning, cutting down and removal of debris.
- g) The successful Bidder will have capability to provide ditch and rough area vegetation cutting typically conducted once per year in the fall upon request and as quoted at the time of request.
- h) All efforts must be made to ensure that no clippings enter the oxidation ditch at the St. Jacobs WWTP.
- i) The sloped grassy area around the digesters behind the admin building at the Galt WWTP must be maintained regularly with the grass.
- j) Foxboro WWTP and Morningside PS do not require summer lawn maintenance.

### **SNOW CLEARING**

The successful Bidder must familiarize itself with the locations of curbs, sidewalks, manholes, valve boxes, and hatches to avoid damage to equipment and structures. A pre-snow Fall survey must be completed by the successful Bidder to assess the current condition of the Facilities by no later than September 15 in each year of the Agreement. At the end of the winter snow clearing season, another survey must be completed to determine if any damage has occurred due to the snow clearing activities no later than May 5 in each year of the Agreement. Placement of reflective rods or other visual aids for snow clearing is required to avoid hitting curbs, grass areas and bollards, etc. Photographic evidence of "as-found conditions" shall be taken by the successful Bidder and provided to the OCWA Representative.

Snow clearing and doorway clearing ensures road and building access to the Facilities. This includes all pedestrian-door gate entries OCWA staff members and visitors must be able to safely enter the Facilities at all times.

The successful Bidder shall provide the following snow removal services.

The following items are included in the base Bid in Table #1 in Appendix C (Rate Bid Form):

- a) All travelled areas must be drivable by 07:00 hours after an overnight snowfall, and by 17:00 hours following a daytime snowfall. All areas, unless otherwise specified below, must be cleared of snow within four (4) hours of any snowfall including drifting that accumulates to more than 10 centimetres. Salting of all plowed areas and must be included in the winter roads maintenance program. All winter maintenance must be completed by 07:00 to allow for typical operator shift changes and 17:00 for daytime snow falls.
- b) The successful Bidder must ensure that staff is available throughout the winter season and on all statutory holidays.
- c) The successful Bidder must be able to respond within two (2) hours for emergency requests.
- d) The Bidder will supply and keep filled the salt containers located throughout the Facilities.
- e) Snow shall be deposited in an area that will not impede entrances or access to doors or walkways.
- f) Winter sidewalk maintenance is required on the city walks along the Manitou TS and Preston WWTP.

#### **Other Important Notes Regarding Snow Clearing**

- a) Each spring, the successful Bidder must repair any damage, including tire ruts caused by snow clearing activities. This includes but is not limited to, curbs, grass areas, pavement, and other appurtenances.

#### **Salting**

- a) To minimize liability concerns for both parties, salting must always be done after every snowfall or other icing type conditions in accordance with industry standards.
- b) The Bidder should guarantee that salt requirements will be met throughout the winter season, and stockpile a sufficient amount to address rationing. Salt costs vary from year to year. Supply and availability can vary as well, resulting in commodity running out mid-season. The Bidder must make appropriate arrangements to maintain a supply through the whole season.

- c) The fixed price on the Rate Bid Form for the RFB must include all salting costs (including overhead costs for the Bidder, and the supply and maintenance of salt bins at all Facilities).
- d) Salt usage is approximately 630 cubic yards (482 m<sup>3</sup>) per season based on historical usage information, but this may vary depending on the winter conditions.
- e) Where seasonal salt usage exceeds 750 cubic yards (573 m<sup>3</sup>) a change order may be negotiated to cover additional costs where salt usage has been tracked and reported using a closed loop system.
- f) With the exception of the Kitchener WWTP and Manitou TS, which must be salted after every snowfall, salting must always be done in accordance with industry standards, to minimize liability concerns for both parties.
- g) Salt should be used at the first sign of roads beginning to ice. The Bidder needs to use discretion and be proactive in reducing the amount of salt used while maintaining the low traffic areas, this can be done by using a combination of rock salt and liquid brine.
- h) Bidder should meet the Region of Waterloo “Smart about Salt” Certification Standard.

## **Reporting**

- a) The Bidder will provide monthly reports/work orders that identify areas where grounds maintenance was completed and state the frequency of cutting.
- b) The Bidder will provide a semi-annual report on the condition of grass along each fence line. The purpose of this report is to use imagery to verify the maintenance of the fence lines.
- c) The Bidder will provide monthly reports to identify areas where snow clearing and salting was completed and state the frequency of snow clearing and salting.
- d) The successful Bidder will be required to attend an initial contractor safety orientation meeting prior to beginning work onsite at the Facilities. Lead hands and supervisors should be in attendance at this meeting. Monthly reports shall be provided no later than the 10<sup>th</sup> business day of the month following the month in which the services were provided.

### **2.3.1 Reserved**

## **2.4 Vendor Performance Framework**

To ensure the successful outcome of the Deliverables, OCWA will be monitoring and reporting on Vendor performance both during the Term and at Deliverable completion. Vendor performance results will be reviewed by OCWA jointly with the Vendor providing opportunities for improvement and allowing both parties to begin corrective actions if necessary.

## **2.5 Reserved**

## **2.6 Pre-Start and Post-Work Requirements**

The successful Bidder must ensure that all on-site staff has satisfactorily completed the OCWA Contractor Safety Awareness Training and provided the requested information before work commences.

## **2.7 Invoices**

Invoices should be sent in electronic format to the address indicated in Section 1.4 (b) of the Agreement. The invoices should clearly indicate the details for every line item.

## **2.8 Insurance and Safety Requirements**

The successful Bidder must carry the following minimum insurance requirements for the duration of the Agreement. Proof of insurance must be submitted with the Bid, and the successful Bidder will be required to submit a subsequent insurance certificate that lists Ontario Clean Water Agency, His Majesty the King, in right of Ontario, as represented by the Minister of the Environment, Conservation and Parks, and the Ministry of the Environment, Conservation and Parks, and the Municipality as an additional insured on the commercial general property and liability insurance:

- a) Insurance Coverage: refer to Article 4.1 of the Form of Agreement in Appendix A.
- b) The successful Bidder shall ensure that each of its subcontractors obtains all the necessary and appropriate insurance that a prudent vendor in the business of the subcontractor would maintain and that the indemnified Parties are named as additional insured with respect to any liability arising in the course of performance of the subcontractor's obligations under the Agreement for the provision of the Deliverables.
- c) Worker's Compensation: All staff employed by the successful Bidder who will be working at the Facility must be covered by WSIB, or by Employer's Liability and Voluntary Compensation if the successful Bidder does not have WSIB coverage.
- d) The successful Bidder's supervisors shall participate in Safety Orientation provided by OCWA.
- e) The successful Bidder shall supply all equipment and labour to perform the work expeditiously with minimal disruption to staff at the Facility.
- f) The successful Bidder shall follow all applicable Acts and Regulations when working in or around the Facility, including donning proper personal protective equipment and high visibility clothing.
- g) The successful Bidder shall provide a copy of its Health and Safety Plan/Policy as related to the Deliverables provided pursuant to the Agreement, including

identification and control of hazards associated with the provision of the Deliverables.

- h) All staff employed by the Bidder who will be working on the Facilities must have completed WHMIS certification.

(End of Part 2)

## Part 3 - Evaluation of Bids

The evaluation of a Bid will be solely based on the contents of the Bid itself and without the need to resort to extrinsic evidence. Bidders are instructed not to include references to external information sources in their Bids. If the information to be evaluated resides elsewhere, in Web sites (URLs) for example, then Bidders must reproduce the referenced content in the appropriate section of their Bid clearly identifying the content that responds to the particular RFB requirement.

Any information in any Web site referred to in Bids will not be accepted and will not be considered in the evaluation process, and will not form part of the contract or any Agreement entered into as a result of this RFB.

In order to be evaluated, any information provided by the Bidder that is intended to support the Bidder's direct response to requirements must be clearly identified as being pertinent to an identifiable requirement, and the page number of this information must be cross-referenced to the particular requirement to which it applies.

### 3.1 Stages of Bid Evaluation

Points will be allotted to a Bidder's response for each of the criteria outlined in this section. The response to each item should:

- Be submitted in a complete and clear manner;
- Demonstrate the Bidder's understanding of OCWA's business needs and should provide a detailed answer to the information requested; and
- Be provided in the same sequential order as set out below, in all the forms provided.

OCWA will conduct the evaluation of Bids in the following four stages:

| Stage | Evaluation of Criteria | Points Allocated                                 |
|-------|------------------------|--------------------------------------------------|
| I     | Mandatory Requirements | Pass / Fail                                      |
| II    | Rated Requirements     | 65                                               |
| III   | Pricing                | 35                                               |
| IV    | Cumulative Score       | Total Points Available in Stage II and III = 100 |

#### 3.1.1 Stage I

Stage I will consist of a review of the Bids submitted in response to this RFB to determine which Bids comply with all of the mandatory requirements. Bids which do not comply with all of the mandatory requirements may, subject to the express and implied rights of OCWA, be disqualified as non-compliant and not evaluated further.

### **3.1.2 Stage II**

Upon completion of Stage I, Stage II will consist of reviewing and scoring the Bidders responses to the questions in Appendix F.

### **3.1.3 Stage III**

Upon completion of Stage II the sealed pricing provided by each of the qualified Bidders will then be opened and Stage III will consist of a scoring of the pricing submitted. The evaluation of price/cost shall be undertaken after the evaluation of Stages I and II have been completed.

### **3.1.4 Stage IV**

At the conclusion of Stage III, all scores from Stage II and Stage III will be added. Subject to satisfactory reference checks and the express and implied rights of OCWA, the highest scoring Bidder will be selected to enter into the Agreement in accordance with Part 4.

## **3.2 Stage I – Mandatory Submission and Project Specific Capability Requirements**

### **Submission Requirements**

Other than inserting the information requested on the mandatory submission forms set out in this RFB, a Bidder may not make any change to any of the forms included in the RFB. Any Bid containing any such change, whether on the face of the form or elsewhere in the Bid, may, subject to the express and implied rights of OCWA, be disqualified.

## **3.3 Form of Offer (Appendix B)**

Each Bid must include a Form of Offer (Appendix B) completed and signed by the Bidder.

### **(a) Conflict of Interest**

In addition to the other information and representations made by each Bidder in the Form of Offer, each Bidder must declare whether it has an actual or potential Conflict of Interest.

If, at the sole and absolute discretion of OCWA, the Bidder is found to be in a Conflict of Interest, OCWA may, in addition to any other remedies available at law or in equity, disqualify the Bid submitted by the Bidder.

The Bidder, by submitting the Bid, warrants that to its best knowledge and belief no actual or potential Conflict of Interest exists with respect to the submission of the Bid or performance of the contemplated contract other than those disclosed in the Form of Offer. Where OCWA discovers a Bidder's failure to disclose all actual or potential Conflicts of Interest, OCWA may disqualify the Bidder or terminate any contract awarded to that Bidder pursuant to this procurement process.



## **(b) Tax Compliance Declaration Form**

The Ontario Government expects all suppliers to pay their provincial taxes on a timely basis. In this regard, Bidders are advised that any contract with the Ontario Government will require a declaration from the successful Bidder that the Bidder's provincial taxes are in good standing.

A Bidder's TCV number is required by the OCWA to confirm with the MOF that the Bidder's Ontario tax obligations, if any, are in good standing. If the Bidder does not provide its TCV number with the Form of Offer, it will have to provide the TCV number prior to signing an Agreement, so OCWA can confirm with the MOF the Bidder's tax compliance status at the time of signing the Agreement.

### **Getting a TCV Number**

The Ministry of Finance (MOF) has automated the Tax Compliance Verification (TCV) process by creating an online portal (<http://www.etax.fin.gov.on.ca/>) where you can confirm your tax compliance status online and at any time.

Follow these steps to verify that your business or entity is tax compliant. Use our instructional video (<https://youtu.be/NcchCeivHto>) to help you through these steps.

1. Visit the MOF Online Services (<https://www.services.fin.gov.on.ca/OTP/Gentax/>) page and select Sign In or Register for TCV in the Tax Compliance Verification box.
2. Create a My Ontario Account using your email address and a secure password or sign in using your existing credentials.
3. Complete the Tax Compliance Verification registration using your business information and select Tax Compliance Verification under your enrollments.
4. Select Request TCV Number.
5. Attach your Filing and Balance Confirmation (FBC) letter (if necessary) using the PDF available under Alternate Format.
  - Your FBC letter must be the most recent version and in the original PDF format.
  - Scanned images, JPGs and expired letters are not accepted.
  - The PDF is available under Alternate Format within your list of correspondence items in your Canada Revenue Agency (CRA) My Business Account.
6. Select View Summary to review compliance information.
7. Download TCV Certificate (optional).
8. Provide an email address to receive alerts about your business or entity's compliance status and bookmark this page for future reference.

## Where to go for help?

Please refer to the Check your Tax Compliance Status page on Ontario.ca <https://www.ontario.ca/page/check-your-tax-compliance-status#section-1> or <https://www.ontario.ca/page/doing-business-government-ontario>

In the event that the Ministry of Finance finds that the successful Bidder's taxes are not in good standing, the successful Bidder must, as a precondition of entering into an agreement, ensure that its status is brought into good standing and provide evidence of its good standing to OCWA. OCWA may rescind the notice of selection of a Bidder who fails to provide evidence of its good standing within the timeframe for satisfying all preconditions of execution set out in the RFB.

By providing the TCV number Bidders are consenting to OCWA releasing the TCV number to the Ministry of Finance for tax compliance verification.

Each Bidder must also include a Tax Compliance Declaration Form (see Appendix B), completed by the Bidder according to the instructions contained in that form. Other than inserting the information requested and signing the Tax Compliance Declaration Form, a Bidder may not make any changes to the Tax Compliance Declaration Form. Bids containing changes to the Tax Compliance Declaration Form may be disqualified.

In addition, if a successful Bidder is a corporation subject to Ontario corporate tax under the Taxation Act, 2007 (Ontario), it will be required to demonstrate that it has met its corporate tax filing obligations by obtaining proof from the Canada Revenue Agency and forwarding this proof to the Ministry of Finance. Successful Bidders will receive instructions regarding this process from the RFB Contact prior to contract award.

Bidders may direct enquiries regarding the Tax Compliance Declaration Form and the Tax Compliance Verification (TCV) process to the OCWA RFB Contact.

### **(c) General**

OCWA, in addition to any other remedies it may have in law or in equity, shall have the right to rescind any Contract awarded to a Bidder in the event that OCWA determines that the Bidder made a misrepresentation or submitted any inaccurate or incomplete information in the Form of Offer.

Other than inserting the information requested and signing the Form of Offer, a Bidder may not make any changes to or qualify the Form of Offer in its Bid. A Bid that includes conditions, options, variations or contingent statements that are contrary to or inconsistent with the terms set out in the RFB may be disqualified. If a Bid is not disqualified despite such changes or qualifications, the provisions of the Form of Offer as set out in this RFB will prevail over any such changes or qualifications in or to the Form of Offer provided in the Bid.

### **3.3.1 Rate Bid Form (Appendix C)**

Each Bidder must include in its Bid the Rate Bid Form attached as Appendix C to the RFB completed according to the instructions contained in the form as well as those instructions set out below:

- (a) Rates shall be provided in Canadian Funds, inclusive of all applicable duties and taxes (excluding HST), and
- (b) Rates quoted by the Bidder shall be all inclusive and shall include all labour and materials, permits, licences and approval costs, travel and carriage costs, insurance costs and all other overhead including but not limited to any fees or other charges required by law.

A Bid that includes conditional, optional, contingent or variable Rates that are not expressly requested in the Rate Bid Form may, subject to the express and implied rights of OCWA, be disqualified.

By submitting a Bid, a Bidder is deemed to confirm that it has prepared its Bid with reference to all of the provisions of the Agreement and has factored all of the provisions of Appendix A, including the insurance requirements, into its pricing assumptions and calculations and into the proposed prices indicated on the Rate Bid Form.

### **3.4 Stage II – Evaluation of Rated Requirements**

Bids that are deemed compliant after Stage I will be evaluated in Stage II.

This section and Appendix F outline the specific criteria that will be used in scoring a Bid and evaluating how it has addressed the requirements identified in this RFB. Bidders will complete the questions in Appendix F to determine their experience and qualifications. Bidders will select answers where appropriate, and will complete sections where required.

Where contradictory information or information that contains conditional or qualifying statements is provided with respect to a rated requirement, OCWA will, in its sole and absolute discretion, determine whether the response complies with the requirements, and may seek clarification from the Bidder. The contradictory or qualifying information may result in the Bid being deemed non-compliant.

**Bidders who exceed a score of 60% after Stage II will move to Stage III.**

The following principles will be applied in assigning a score to each individual Bidder response to the experience and qualifications set out in Appendix F.

| Rated Requirement                                                                                                                                                                                                                                              | Score |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------|
| A detailed and relevant response addressing all the components of the rated requirement and above<br>(e.g. added value, expertise, exceeding all requirements, access to better program and demonstrated deep knowledge, would make a significant difference). | 5     |
| A relevant response deemed to be more than a minimum satisfactory response<br>(e.g. added value, expertise, exceed the requirement can provide more than the basic request, would be of value to OCWA).                                                        | 4     |
| A satisfactory response<br>(i.e., meets the requirement stated in the deliverable).                                                                                                                                                                            | 3     |
| A less than satisfactory response<br>(i.e. can provide only a partial deliverable or less than what is needed in relation to the deliverable requested in this RFB).                                                                                           | 2     |
| A minimal response with no explanation<br>(e.g., yes/agreed; no/not agreed) will gain a score of one point. If no explanation is required, a “Yes” answer will gain a score of three and a “No” answer would receive a score of zero.                          | 1     |
| The absence of any response                                                                                                                                                                                                                                    | 0     |

The score for each individual item in Appendix F will be calculated as follows:

$$\text{Item score} = \text{assigned weighting} * \text{score} / 5$$

### 3.5 Stage III – Evaluation of Pricing

#### 3.5.1 Pricing

At the conclusion of Stage II, pricing will be scored in the same manner based on a relative pricing formula using Appendix C – Rate Bid Form.

Each Bidder will receive a percentage of the total possible points allocated to price by dividing that Bidder’s price in Appendix C Rate Bid Form into the lowest bid price.

Each Bidder will receive a percentage of the total possible points allocated to price for the particular category it has bid on by dividing that Bidder’s price into the lowest bid price in that category. For example, if the lowest bid price for a particular category is \$120.00, that Bidder receives 100% of the possible points for that category ( $120/120 = 100\%$ ), a Bidder who bids \$150.00 receives 80% of the possible points for that category ( $120/150 = 80\%$ ) and a Bidder who bids \$240.00 receives 50% of the possible points for that category ( $120/240 = 50\%$ ).

Lowest rate  
 ----- x Total available points = Score for Bid with 2<sup>nd</sup> lowest rate  
 2<sup>nd</sup> lowest rates

Lowest rate  
 ----- x Total available points = Score for Bid with 3<sup>rd</sup> lowest rate and so on.  
 3<sup>rd</sup> lowest rates

### 3.5.2 Materially Unbalanced or Abnormally Low Bids

- a) A Bid is materially unbalanced if:
  - it is based on prices which are significantly less than cost for some items and prices which are significantly overstated in relation to cost for other items; and
  - OCWA has determined that the Bid may not result in the lowest overall cost to OCWA even though it may be the lowest submitted Bid; or
  - it is so unbalanced as to be tantamount to allowing an advance payment.
- b) A Bid is abnormally low if the pricing, in combination with other constituent elements of the Bid, appears unreasonably low to the extent that the pricing raises material concerns with OCWA as to the capability of the Bidder to perform the Agreement on the basis of the offered pricing.
- c) If a materially unbalanced Bid or an abnormally low Bid is identified, OCWA may seek clarification from the Bidder, including a detailed price analysis of its pricing in relation to the subject matter of the Agreement, the scope, the estimated quantities, the schedule for Agreement performance, the allocation of risks and responsibilities and any other requirements of RFB.
- d) If after evaluation of the price analysis, OCWA determines that the Bidder has failed to demonstrate its capability to perform the Agreement on the basis of the offered pricing, or that the offered pricing in constitutes a material risk to OCWA, OCWA may reject the Bid.

### 3.6 Selection of Preferred Bidder for Contract Award

At the conclusion of Stage III, all scores from Stage II and Stage III will be added and, subject to security screening (if required), reference checks (if conducted), tax compliance verification from the Ministry of Finance, and the express and implied rights of OCWA, and if satisfactory, the highest scoring Bidder will be selected to enter into the Agreement in accordance with Part 4.

Bidders should include a Reference Form in accordance with the instructions set out in the Form attached as Appendix G to this RFB. The references should be persons for whom the Bidder has successfully provided similar goods and services to the Deliverables described in this RFB within the last five years.

## Part 4 - Terms and Conditions of the RFB Process

### 4.1 General Information and Instructions

#### 4.1.1 Timetable

The following is the schedule for this RFB:

|                                 |                             |
|---------------------------------|-----------------------------|
| Issue Date of RFB               | 2025-11-24                  |
| Mandatory site visit meeting    | 2025-12-05 @ 9:00 AM EST    |
| Bidder's Deadline for Questions | 2025-12-10 @ 4:00 PM EST    |
| Deadline for Issuing Addenda    | 2025-12-15                  |
| Bid Submission Deadline         | 2026-01-09 @ 12:00 noon EST |

The RFB timetable is tentative only and may be changed by OCWA in its sole discretion at any time prior to the Bid Submission Deadline.

#### 4.1.2 Bidders to Follow Instructions

Bidders should structure their Bids in accordance with the instructions in this RFB. Where information is requested in this RFB, any response made in a Bid should reference the applicable section numbers of this RFB where that request was made.

#### 4.1.3 Bidders to Obtain RFB Only Through [Jaggaer](#)

Subject to the information below, this RFB is available only through [ontariotenders.app.jaggaer.com](https://ontariotenders.app.jaggaer.com), the electronic tendering system provided by Jaggaer, used by the Province of Ontario. For ease of use this system can also be accessed through [Ontario.ca/tenders](https://ontario.ca/tenders).

For technical information about the electronic tendering system, call 866-722-7390 or send an e-mail [eTenderhelp\\_CA@jaggaer.com](mailto:eTenderhelp_CA@jaggaer.com).

A Bidder who has not obtained this RFB through <https://ontariotenders.app.jaggaer.com> may have its Bid disqualified unless a third party has requested this RFB from [Jaggaer](#) on that Bidder's behalf and that Bidder has identified the third party in their Bid submission. Failure to identify the third party in this manner may result in disqualification of a Bid.

#### 4.1.4 Bids in English

All Bids must be in English only. Any Bids received by OCWA that are not entirely in the English language may be disqualified.

#### **4.1.5 OCWA's Information in RFB Only an Estimate**

OCWA and its advisors make no representation, warranty or guarantee as to the accuracy of the information contained in this RFB or issued by way of addenda. Any quantities shown or data contained in this RFB or provided by way of addenda are estimates only and are for the sole purpose of indicating to Bidders the general size of the work.

It is the Bidder's responsibility to avail itself of all the necessary information to prepare a Bid in response to this RFB.

#### **4.1.6 Bidders Shall Bear Their Own Costs**

The Bidder shall bear all costs associated with or incurred in the preparation and presentation of its Bid including, if applicable, costs incurred for interviews or demonstrations.

### **4.2 Communication After Issuance of RFB**

#### **4.2.1 Bidders to Review RFB**

Bidders shall promptly examine all of the documents comprising this RFB and:

- (a) shall report any errors, omissions or ambiguities; and
- (b) may direct questions or seek additional information

in writing by e-mail (and not by any other means) on or before the Bidder's Deadline for Questions to the RFB Contact set out at Section 1.6 of this RFB. All questions submitted by Bidders by e-mail to the RFB Contact shall be deemed to be received once the e-mail has entered into the RFB Contact's e-mail inbox. No such communications are to be directed to any OCWA employee other than the RFB Contact. For greater clarity, Bidders shall not make any such communications with respect to their Bids, or the RFB documents, or the RFB process to any other OCWA employees, or to any provincial employees, municipal employees, or any other persons affiliated with, or having knowledge or awareness of, this RFB. Bidders who fail to strictly adhere to this provision, as well as to Section 4.5.1 and Section 3.3 (a) "Conflict of Interest" of this RFB, may have their Bid disqualified. OCWA is under no obligation to provide additional information but may do so at its sole discretion.

It is the responsibility of the Bidder to seek clarification from the RFB Contact on any matter it considers to be unclear. OCWA shall not be responsible for any misunderstanding on the part of the Bidder concerning this RFB or its process.

#### **4.2.2 All New Information to Bidders by way of Addenda on Jaggaer**

This RFB may only be amended by an addendum in accordance with this subsection. If OCWA, for any reason, determines that it is necessary to provide additional information relating to this RFB, such information will be communicated to all Bidders by addenda

by way of Jaggaer. Each addendum shall form an integral part of this RFB.

Such addenda may contain important information including significant changes to this RFB. Bidders are responsible for obtaining all addenda issued by OCWA. In the space provided in the Form of Offer, Bidders shall confirm their receipt of all addenda by setting out the number of each addendum in the space provided in the Form of Offer.

Bidders who intend to respond to this RFB are requested not to cancel the receipt of addenda or amendments option provided by Jaggaer, since they must obtain through Jaggaer all of the information documents that are issued through Jaggaer.

In the event that a Bidder chooses to cancel the receipt of addenda or amendments option, its Bid may be rejected.

#### **4.2.3 Post-Deadline Addenda and Extension of Bid Submission Deadline**

If any addendum is issued after the Deadline for Issuing Addenda, OCWA may at its discretion extend the Bid Submission Deadline for a reasonable amount of time.

### **4.3 Submission of Bids**

#### **4.3.1 Bids Submitted Only in Prescribed Manner**

E-mail entire submission as outlined below.

Bidders must provide their submission by e-mail to the RFB Contact. All submissions submitted by Bidders by email to the RFB Contact are deemed received once the e-mail has entered into the e-mail inbox of the RFB Contact. Submissions are to be directed only to the RFB Contact. Please note the maximum file size is 25MB.

The RFB Contact shall not be responsible for any e-mail delivery issues or technical problems with regard to the submissions, or if the submission is sent to an email address that is different from the one provided for submissions. Late submissions may not be accepted. Bidders are permitted to send multiple emails with attachments to work with the maximum file size limitations.

#### **4.3.2 Bids Must Be Submitted On Time at Prescribed Location**

Bids must be submitted on or before the Bid Submission Deadline. Bids submitted after this point in time will be deemed late, disqualified and returned to the Bidder. For the purpose of calculating time, the OCWA e-mail receipt time of the submission shall govern.



#### **4.3.3 Amending or Withdrawing Bids Prior to Bid Submission Deadline**

At any time prior to the Bid Submission Deadline, a Bidder may amend or withdraw a submitted Bid. The right of Bidders to amend or withdraw includes amendments or withdrawals wholly initiated by Bidders and amendments or withdrawals in response to subsequent information provided by addenda.

Any amendment should clearly indicate what part of the Bid the amendment is intending to replace.

A notice of amendment or withdrawal must be sent [procurement@ocwa.com](mailto:procurement@ocwa.com) prior to the Bid Submission Deadline and must be signed by an authorized representative of the Bidder. OCWA is under no obligation to return amended or withdrawn Bids.

#### **4.3.4 OCWA May Seek Clarification and Incorporate Response into Bid**

OCWA reserves the right to seek clarification and supplementary information relating to the clarification from Bidders after the Bid Submission Deadline. The response received by OCWA from a Bidder shall, if accepted by OCWA, form an integral part of that Bidder's Bid. OCWA reserves the right to interview any or all Bidders to obtain information about or clarification of their Bids. In the event that OCWA receives information at any stage of the evaluation process which results in earlier information provided by the Bidder being deemed by OCWA to be inaccurate, incomplete or misleading, OCWA reserves the right to revisit the Bidder's compliance with the mandatory requirements and/or adjust the scoring of rated criteria.

#### **4.3.5 RFB Incorporated into Bid**

All of the provisions of this RFB are deemed to be accepted by each Bidder and incorporated into each Bidder's Bid.

#### **4.3.6 No Incorporation by Reference by Bidder**

The entire content of the Bidder's Bid should be submitted in a fixed form and the content of web sites or other external documents referred to in the Bidder's Bid will not be considered to form part of its Bid.

#### **4.3.7 Bid to Be Retained by OCWA**

Subject to Section 4.3.2, OCWA will not return the Bid or any accompanying documentation submitted by a Bidder.

#### **4.3.8 Excusable Delay**

In the event of an excusable delay, OCWA may, at its sole discretion, extend any one or more of the dates and times set out in Section 4.1.1 RFB Timetable.

Excusable delay as used in this section means a delay caused by an event of *force majeure* which shall:

1. include but not be limited to, acts of God, natural disasters, acts of war, riots, plagues, epidemics, insurrection, or terrorism; and
2. not include shortages or delays relating to supplies or services, traffic delays/accidents, inclement weather, or any failure by a third party to deliver the RFB by the Bid Submission Deadline.

#### **4.4 Execution of Agreement, Notification and Debriefing**

##### **4.4.1 Selection of Bidder**

OCWA anticipates that OCWA will select the successful Bidder within 30 days of the Bid Submission Deadline. Notice of selection by OCWA to the successful Bidder will be in writing. The successful Bidder shall execute the Agreement and satisfy any other applicable conditions of this RFB within 15 days of notice of selection. This provision is solely to the benefit of OCWA and may be waived by OCWA at its sole discretion.

A Bidder who submits conditions, options, variations or contingent statements to the terms set out in the Agreement, either as part of its Bid or after receiving notice of selection, may be disqualified. OCWA acknowledges the need to add transaction-specific particulars to Schedule 1 of the Agreement but OCWA will not otherwise make material changes to the Agreement.

Bidders are reminded that there is a question and answer period available if they wish to ask questions or seek clarification about the terms and conditions set out in the Agreement. OCWA will consider such requests for clarification in accordance with Section 4.2.1 of the RFB.

##### **4.4.2 Failure to Enter Into Agreement**

In addition to all of OCWA's other remedies, if the successful Bidder fails to execute the Agreement or satisfy any other applicable conditions within 15 days of notice of selection, OCWA may, in its sole and absolute discretion and without incurring any liability, rescind the selection of that Bidder and proceed with the selection of another Bidder.

##### **4.4.3 Notification to Other Bidders of Outcome of Procurement Process**

Once the successful Bidder and OCWA execute the Agreement, the unsuccessful Bidders will be notified by OCWA in writing of the outcome of the procurement process, including the names of the successful Bidder, and the award of the contract to the successful Bidder.

##### **4.4.4 Debriefing**

Bidders may request a debriefing after receipt of a notification of award. All requests must be in writing to the RFB Contact and must be made within 60 days of notification of award. The intent of the debriefing information session is to aid the Bidder in presenting a better Bid in subsequent procurement opportunities. Any debriefing

provided is not for the purpose of providing an opportunity to challenge the procurement process.

#### **4.4.5 Subcontracting**

Unless otherwise stated in this document, it is mutually agreed and understood that the successful Bidder will not assign, transfer, convey, sublet or otherwise dispose of the contract (in whole or in part) or the right, title or interest therein, or the Bidder power to execute such contract to any other person, firm, company or corporation without the previous written consent of OCWA. Regardless of the relationships between a successful Bidder and its subcontractors, the successful Bidder who enters into the Agreement with OCWA will be directly responsible for performing the obligations of the Supplier under the Agreement.

### **4.5 Prohibited Communications, Confidential Information and FIPPA**

#### **4.5.1 Prohibited Bidder Communications**

Bidders shall address all questions and requests for clarification with respect to their Bids, or the RFB documents or the RFB process only to the OCWA Contact set out at Part 1 of this RFB.

Bidders shall not contact or make any attempt to contact,

- (a) any person (including but not limited to any other OCWA employee or representative, or any provincial or municipal employee or representative, or any other person affiliated with, or having knowledge or awareness of, the RFB) other than the OCWA Contact; or,
- (b) any other Bidder with respect to a Bid, the RFB documents, or the RFB process, at any time during the RFB process.

Without limiting the generality of the above, Bidders shall not contact or attempt to contact,

- (a) any OCWA employee or representative other than the OCWA Contact;
- (b) any employee or representative of the Municipality;
- (c) any employee or representative of the Ontario provincial government;
- (d) any staff of the Premier of Ontario's office or the Ontario Cabinet Office;
- (e) any Member of the Ontario Provincial Parliament or their staff or advisors; or
- (f) any Member of the Ontario Provincial Cabinet or their staff or advisors,

on matters related to their Bids, the RFB documents, or the RFB process at any time during the RFB process.

#### **4.5.2 Bidder Not to Communicate With Media**

A Bidder may not at any time directly or indirectly communicate with the media in relation to this RFB or any contract awarded pursuant to this RFB without first obtaining the written permission of the RFB Contact.

#### **4.5.3 Confidential Information of OCWA**

All information provided by or obtained from OCWA in any form in connection with this RFB either before or after the issuance of this RFB:

- (a) is the sole property of OCWA and must be treated as confidential;
- (b) is not to be used for any purpose other than replying to this RFB and the performance of any subsequent Contract;
- (c) must not be disclosed without prior written authorization from OCWA; and
- (d) shall be returned by the Bidder to OCWA immediately upon the request of OCWA.

#### **4.5.4 Freedom of Information and Protection of Privacy Act**

The *Freedom of Information and Protection of Privacy Act*, R.S.O. 1990, c.F.31, as amended, applies to information provided to OCWA by a Bidder. A Bidder should identify any information in its Bid or any accompanying documentation supplied in confidence for which confidentiality will be maintained by OCWA. The confidentiality of such information will be maintained by OCWA, except as otherwise required by law or by order of a court or tribunal. Bidders are advised that their Bids will, as necessary, be disclosed on a confidential basis, to OCWA's advisers retained for the purpose of evaluating or participating in the evaluation of their Bids.

By submitting any Personal Information requested in this RFB, Bidders are agreeing to the use of such information as part of the evaluation process, for any audit of this procurement process and for contract management purposes. Where the Personal Information relates to an individual assigned by the successful Bidder to provide the Deliverables, such information may be used by OCWA to compare the qualifications of such individual with any proposed substitute or replacement in accordance with the Performance by Specified Individuals Only paragraph of the Agreement. If a Bidder has any questions about the collection and use of Personal Information pursuant to this RFB, questions are to be submitted to the RFB Contact in accordance with the Bidders to Review RFB section.

### **4.6 Reserved Rights and Governing Law**

#### **4.6.1 Reserved Rights of OCWA**

OCWA reserves the right to:

- (a) make public the names of any or all Bidders;

- (b) request written clarification or the submission of supplementary written information in relation to the clarification request from any Bidder and incorporate a Bidder's response to that request for clarification into the Bidder's Bid;
- (c) assess a Bidder's Bid on the basis of:
  - i. a financial analysis determining the actual cost of the Bid when considering factors including transition costs arising from the replacement of existing goods, services, practices, methodologies and infrastructure (howsoever originally established);
  - ii. information provided by references;
  - iii. the Bidder's past performance on previous contracts awarded by the Government of Ontario;
  - iv. the information provided by a Bidder pursuant to OCWA exercising its clarification rights under this RFB process; or
  - v. other relevant information that arises during this RFB process;
- (d) waive formalities and accept Bids which substantially comply with the requirements of this RFB;
- (e) verify with any Bidder or with a third party any information set out in a Bid;
- (f) check references other than those provided by any Bidder;
- (g) disqualify any Bidder whose Bid contains misrepresentations or any other inaccurate or misleading information;
- (h) disqualify any Bidder or the Bid of any Bidder who has engaged in conduct prohibited by this RFB;
- (i) reject any markups in anticipation of tariffs. Bidders are not permitted to include markups in anticipation of tariffs on the Rate Bid Form. OCWA will reimburse the successful Bidder for actual tariffs imposed by the Canadian or United States government on goods after the submission of a Bid. Tariff charges will be reimbursed at cost by OCWA, upon written proof of said tariffs;
- (j) disqualify any Bidder that is a "U.S. Business" as that term is defined in this RFB;
- (k) make changes, including substantial changes, to this RFB provided that those changes are issued by way of addenda in the manner set out in this RFB;
- (l) select any Bidder other than the Bidder whose Bid reflects the lowest cost to OCWA or the highest score;
- (m) cancel this RFB process at any stage;
- (n) cancel this RFB process at any stage and issue a new RFB for the same or similar deliverables;
- (o) accept any Bid in whole or in part;
- (p) reject any or all Bids; or
- (q) not accept or remove from evaluation a Bid or not make an award to a Bidder where the Bidder, any corporation that is an affiliate of or successor of the Bidder, or an officer, director or shareholder of the Bidder, has brought a claim or instituted a legal proceeding against OCWA or against whom OCWA has brought a claim or instituted a legal proceeding;

and these reserved rights are in addition to any other express rights or any other rights which may be implied in the circumstances and OCWA shall not be liable for any expenses, costs, losses or any direct or indirect damages incurred or suffered by any

Bidder or any third party resulting from OCWA exercising any of its express or implied rights under this RFB.

By submitting its Bid, the Bidder authorizes the collection by OCWA of the information set out under (e) and (f) in the manner contemplated in those subparagraphs.

#### **4.6.2 Governing Law of RFB Process**

This RFB process shall be governed by and construed in accordance with the laws of the Province of Ontario and the federal laws of Canada applicable therein.

## **APPENDIX A – Form of Agreement**

### **Standing Agreement- YY**

THIS AGREEMENT is made as of the YY day of YY, 20YY

B E T W E E N:

**ONTARIO CLEAN WATER AGENCY/AGENCE ONTARIENNE DES EAUX,**  
a corporation established under the Capital Investment Plan Act, 1993, c.23, Statutes of  
Ontario.

(referred to in this Agreement as “OCWA”)

A N D

**[Draft – Not To Be Completed By Vendor],**  
a company operating under the laws of Ontario and having its head office at YY

(referred to in this Agreement as the “Supplier”)

#### **Background to This Agreement:**

- a. OCWA carries on the business consisting principally of the management, operation and maintenance of water and wastewater treatment facilities in the Province of Ontario.
- b. The Supplier is engaged in the business consisting principally of the provision of YY.
- c. OCWA desires to purchase from the Supplier, the goods and services (the “Services”) as further described below and in Schedules A, B, C, D, E and F in order to assist it to conduct its business, and the Supplier wishes to supply the Goods and Services for OCWA.

NOW THEREFORE, in consideration of the mutual covenants contained in this Agreement and other good and valuable consideration, the sufficiency of which is hereby irrevocably acknowledged, OCWA and the Supplier agree as follows:

#### **Article One - Performance of Services**

- 1.1 **Basic Commitment.** OCWA agrees to retain the Supplier to provide OCWA with Services as described below and in Schedules A, B, C, D, E and F with respect to YY services.
- 1.2 **Term of Agreement.** This Agreement shall remain in full force and effect from YY, 20YY to YY, 20YY (the “Term”), and the option to renew for XX additional

terms of XX years, subject to earlier termination as provided in Article 7. {XX – insert renewal option from Part 1 here). Any Agreement extensions and renewal pricing must be mutually agreed upon by both parties.

- 1.3 **OCWA Representatives.** In the course of providing the Services, the Supplier shall deal directly with and take instructions from the YY Manager or such other designate of the YY Manager (the “OCWA Representative”).

1.4 **Payment.**

- a. **Prices.** In consideration of the provision of the Services, OCWA agrees to pay the Supplier the prices set out in Schedule “C” (the “Prices”). The Prices shall include all costs incurred by the Supplier to carry out the Services and shall be firm for the entire Term. The Prices are quoted exclusive of taxes. The Harmonized Sales Tax (the “HST”) shall be applied to the Prices.
- b. **Invoices.** An invoice for Services performed shall be submitted to the OCWA Representative on a lump sum basis at the completion of the work unless otherwise specified by OCWA. Invoices shall indicate a breakdown of labour, material and equipment descriptions and costs.

Invoice must be sent to: [YY@ocwa.com](mailto:YY@ocwa.com)

- c. **Approval.** If the OCWA Representative approves the invoice, it shall be processed for payment. OCWA shall notify the Supplier within 30 days’ receipt of the invoice if it disputes any portion of the invoice. Payment of all invoices is net 30 days subject to the holdback provision in subsection 1.4.d. In the event an overpayment is discovered by audit or otherwise, the amount of overpayment shall be credited to future payments hereunder or repaid to OCWA as determined by OCWA.
- d. **Holdback.** If the Services to be provided under this Agreement fall within the scope of the *Construction Act* then a portion of the invoice amount will be held back from each month's invoice (the "Holdback"). The Holdback amount shall be 10% of each invoice.
- e. **Statutory Declaration.** Prior to the release of the Holdback the Supplier shall provide a Statutory Declaration confirming that all of its trades, sub-trades, contractors, sub-contractors, suppliers and all other companies or persons providing services to the Supplier for the purposes of this Agreement, have been paid in full and that the period for the filing of any lien under the Construction Act has expired.



- f. **Quantities.** Notwithstanding any statement or estimates of quantities made by OCWA staff, OCWA does not warrant or guarantee in any way, the maximum or minimum amount of quantities. The responsibility and liability of the Purchaser will be limited to the quantities actually ordered and received by the Purchaser.

## **1.5 Compliance with Laws.**

- a. The Supplier shall supply the Services to OCWA in compliance with all applicable laws, by-laws, regulations, policies, guidelines or directives, including but not limited to all applicable laws, by-laws, regulations, policies or directives relating to protection of the environment, labelling, documentation, transportation and occupational health and safety as they may change from time to time ("Applicable Laws").
- b. Failure by the Supplier to comply with the Applicable Laws may result in a refusal by OCWA to accept delivery of the Services.

## **Article Two – Representations, Warranties and Covenants of the Supplier**

- 2.1 **Authority of the Supplier.** The Supplier warrants that it has the power and authority to enter into and carry out all of its obligations under this Agreement.
- 2.2 **Provision of Services.** The Supplier represents and warrants to OCWA that it, and any employee or other person that the Supplier may retain to help perform the Services, will have all necessary skills, training and qualifications to provide the Services in accordance with the provisions of this Agreement, including all necessary approvals, licences, certificates, authorizations and the like that may be required by law, policy, directive and otherwise.
- 2.3 **Fines and Penalties.** The Supplier represents to OCWA that it has no fine, penalty, investigation (pending or actual), notice, order, direction or charge against it pursuant to environmental, health and safety or transportation laws and regulations that have not been disclosed to OCWA in writing.
- 2.4 **Standard of Care.** The Supplier shall perform the Services with a level of skill and care consistent with the best procedures, protocols and practices accepted in the Supplier's business. The Supplier will provide the Services in accordance with all relevant local, provincial and federal laws, regulations, by-laws, codes, guidelines and standards that are applicable at the time the Supplier provides the Services, including but not limited to those mentioned elsewhere in this Agreement.

2.5 **Subcontractors and Assignees.** Normally, all the Services shall be performed by the Supplier. The use of subcontractors or assignees by the Supplier for any part of this Agreement may be permitted in the event of a contingency subject to prior approval and consent of such subcontractors or assignees in accordance with the specifications, terms and conditions of this Agreement of OCWA obtained in writing. The Supplier remains bound by this Agreement, and shall indemnify OCWA and any Municipality from all claims and demands of subcontractors and assignees, and for any liability arising as a result of the actions of the subcontractors or assignees.

2.6 **Conflict of Interest.**

- a. The Supplier, any sub-contractors and any of their respective advisors, partners, directors, officers, employees, agents and volunteers shall not engage in any activity or provide any services to OCWA where such activity or the provision of such services, creates a conflict of interest (actually or potentially in the sole opinion of OCWA) with the provision of Services pursuant to this Agreement. The Supplier acknowledges and agrees that it shall be a conflict of interest for it to use confidential information of the Crown relevant to the Services where the OCWA Representative has not specifically authorized such use.
- b. The Supplier shall disclose to OCWA without delay any actual or potential situation that may be reasonably interpreted as either a conflict of interest or a potential conflict of interest.
- c. The Supplier covenants and agrees that it will not hire or retain the services of any employee or previous employee of the Ontario Public Service where to do so constitutes a breach by such employee or previous employee of either Section 21 or Part 3 of the *Conflict of Interest and Post-Service Directive for Public Officials and Public Servants*, as may be amended from time to time.
- d. A breach of this Section by the Supplier shall entitle OCWA to terminate this Agreement, in addition to any other remedies that OCWA has in the Agreement, in law or in equity.

2.7 **Supplier Representation Regarding Eligibility**

The Supplier represents that it is not a “U.S. Business” as that term is defined in this Agreement.

### **Article Three – Confidentiality**

- 3.1 **Confidentiality and Security.** The Supplier agrees to ensure that the Supplier shall, both during and following the Term or any Renewal Term, maintain confidential and secure, all material and information provided to the Supplier, obtained directly or indirectly from, or belonging to OCWA and in the possession

or under the control of the Supplier pursuant to this Agreement. The Supplier agrees that it shall not directly or indirectly disclose or use, either during or following the Term or any Renewal Term, any material or information provided to it, obtained directly or indirectly from, or belonging to OCWA, pursuant to this Agreement, without first obtaining the written consent of an OCWA Representative for such disclosure or use.

## **Article Four - Insurance, Liability and Indemnity**

### **4.1 Supplier's Insurance and Safety Coverage.**

- a. The Supplier shall, without limiting its obligations and liabilities under this Agreement, maintain:
  - I. Commercial general liability insurance in an amount with per occurrence and aggregate limits of not less than \$5,000,000 naming the additional insured parties. Any commercial general liability insurance required hereunder will include:
    - i. Non-owned automobile liability;
    - ii. Contractual liability for all contracts entered into with respect to the Work;
    - iii. Products and completed operations cover for a period of 24 months following completion of the Work or the specific party's portion of the Work;
    - iv. Pollution cover to the extent of IBC Endorsement 2313 with 120 hours detection and reporting;
    - v. Cross liability clause;
    - vi. 30 days' notice of cancellation or material change to all Named Insureds.

Additional insured parties: Ontario Clean Water Agency; His Majesty the King, in right of Ontario, as represented by the Minister of the Environment, Conservation and Parks; Ministry of the Environment, Conservation and Parks; and The Municipality in which work is being performed under written contract or written Agreement.

- II. Automobile Insurance to cover vehicles that are owned and/or leased to the name of the Supplier used in the performance of this contract. This should include a Third Party Liability limit of not less than \$5,000,000 and include all statutorily required coverages.
- b. The Supplier shall provide OCWA with certificates of insurance evidencing compliance to the insurance specifications noted above. If the Supplier's Commercial General Liability is maintained on an annual basis, the Supplier agrees to evidence continuous renewal of coverages for 24 months following completion of the Work with annual renewal certificates issued to OCWA and the Municipality.

- c. Subcontractors - The Vendor shall ensure that each of its Subcontractors obtains all the necessary and appropriate insurance that a prudent person in the business of the Subcontractor would maintain and that the Indemnified Parties are named as additional insured with respect to any liability arising in the course of performance of the Subcontractor's obligations under the subcontract for the provision of the Deliverables.
  - d. Proof of WSIA Coverage - If applicable, the Vendor shall submit a valid WSIB clearance certificate to the Client Representative before the Vendor executes this Agreement. In addition, the Vendor shall, from time to time at the request of the Client Representative, provide additional WSIB clearance certificates. The Vendor covenants and agrees to pay when due, and to ensure that each of its Subcontractors pays when due, all amounts required to be paid by it and by its Subcontractors, from time to time during the Term of this Agreement, failing which the Client shall have the right, to pay to the WSIB any amount due and unpaid by the Vendor or its Subcontractors and to deduct such amount from any amount due and owing from time to time to the Vendor pursuant to the Agreement together with all costs incurred by the Client in connection therewith.
  - e. Worker's Compensation: All staff employed by the Supplier who will be working at OCWA's offices must be covered by WSIB, or by Employer's Liability and Voluntary Compensation if the Supplier does/do not have WSIB coverage.
  - f. The Supplier's supervisors shall participate in Safety Orientation provided by OCWA.
  - g. The Supplier shall supply all equipment and labour to perform the work expeditiously with minimal disruption to staff at the Facility.
  - h. The Supplier shall follow all applicable Acts and Regulations when working in or around the Facility, including donning proper personal protective equipment and high visibility clothing.
  - i. The Supplier shall provide a copy of its Health and Safety Plan/Policy as related to the Deliverables provided pursuant to the Agreement, including identification and control of hazards associated with the provision of the Deliverables.
- 4.2 **Liability of Supplier.** The Supplier, its agents, all workers and persons employed by it, or under its control, including subcontractors, shall use due care to ensure that no person is killed or injured or property is damaged and that no rights are infringed while carrying out the Services. The Supplier shall be solely responsible for all damages in respect of any injury to persons or damage to property of whatever description occasioned in the carrying on of the Services or any part thereof, or by any negligence, misfeasance or nonfeasance on the part of the Supplier, or on the part of any of its agents, workers or persons employed by it or under its control, including subcontractors or assignees.

#### 4.3 **Indemnity.**

- a. The Supplier shall exonerate, indemnify and save harmless the following parties, (collectively referred to as the “Indemnified Parties”):
  - i. OCWA and any of its directors, officers, employees and agents; and
  - ii. His Majesty the King in Right of Ontario, as represented by the Minister of the Environment, Conservation, and Parks and all officers, employees and agents of the Ministry of the Environment, Conservation, and Parks; and
  - iii. The Municipality and any of its elected officials, directors, officers, employees and agents, on behalf of whom OCWA carries out its Business from all costs, losses, damages, liabilities, judgements, claims, demands, suits, actions or other proceedings of any kind resulting from, connected with or attributed to anything done or omitted to be done by the Supplier or any of its partners, directors, officers, employees and agents in connection with the Services provided (or required to be provided) under this Agreement.
- b. The Indemnified Parties will not be responsible for any damage or loss to the Supplier’s vehicles or any other equipment owned by the Supplier, while on the premises of any location where OCWA may be providing services or any location authorized by OCWA.
- c. OCWA shall be deemed to hold the provisions of this Section 4.3 that are for the benefit of the Indemnified Parties, in trust for all such Indemnified Parties as third party beneficiaries under this Agreement.

4.4 **Supplier an Independent Contractor.** In providing the Services, the Supplier shall be acting as an independent contractor and only to the extent and for the specific purpose described in this Agreement. Neither the Supplier nor any of its partners, directors, officers, employees or agents shall be construed as OCWA employees, even though they may be required to undertake some or all of the activities on premises of OCWA utilizing equipment, hardware and software belonging to OCWA.

4.5 **Causes beyond Control.** Notwithstanding any other provision in this Agreement, failure or delay in performance by any party of any term of this Agreement shall be excused to the extent caused by any event beyond such party’s reasonable control provided the party prevented from or delayed in rendering performance notifies the other party in writing immediately and in detail, of the commencement and nature of such a cause and provided further that such party uses its best efforts to render performance in a timely manner utilizing to such end all resources reasonably required in the circumstances, including obtaining supplies or services from other sources if same are reasonably available.

## Article Five – Health and Safety Matters

- 5.1 **Contact Person.** While the Supplier is providing the goods/services pursuant to this Agreement, the OCWA contact person is the OCWA Representative. The Supplier contact person will be Annika West.
- 5.2 **Release.** The Supplier releases OCWA and His Majesty the King in Right of Ontario as represented by the Minister of the Environment, Conservation and Parks and the Municipality of YY (the “Municipality”) together with the directors, officers, employees and agents of OCWA and the Ministry of the Environment, Conservation and Parks and the Municipality (the “Released Parties”) from all claims, injuries (including death), damages, costs, liabilities, judgments of every kind and nature whatsoever that arise out of the Supplier and its employees, agents and subcontractors providing the goods/services at, or having access to, the Facility, whether arising from negligence, breach of contract or otherwise.
- 5.3 **Failure to meet Conditions of this Article.** If the Supplier fails to meet any of the conditions of this Article 5, OCWA may terminate the Supplier immediately without notice and OCWA will pay for the goods/services received up to the date of termination.
- 5.4 **Subcontractors.** The Supplier shall inform the OCWA contact person of any work that it intends to subcontract prior to such subcontractor providing the Services. The Supplier shall use only qualified subcontractors. The Supplier shall preserve and protect the rights of the parties under this Agreement with respect to the Services to be provided under the subcontract and the Supplier shall:
- (a) enter into agreements with the intended subcontractors to require them to meet the requirements of and perform their work in accordance with all applicable terms and conditions of this Agreement and, in particular and without limiting the generality of the foregoing, the insurance and indemnification requirements and Occupational Health and Safety obligations; and
  - (b) be fully responsible to OCWA for acts and omissions of its subcontractors.
- 5.5 **Supplier’s Obligations.** The Supplier acknowledges that it is responsible for meeting all of the “employer” obligations under the *Occupational Health and Safety Act* and its regulations, R.S.O. 1990, c.O.1, as amended (referred to collectively as the “OHSA”) and shall ensure that all work is carried out in accordance with the OHSA. This includes, but is not limited to, the duties to: provide a safe workplace; provide information and educate workers on workplace hazards; appoint a competent supervisor; prepare and provide a health and safety policy, implement a comprehensive health and safety program to support the policy and take every reasonable precaution to protect the health and safety

of workers. As such, the Supplier shall provide an original signed copy of the *Occupation Health and Safety Declaration*, attached as Schedule A to this Agreement.

- 5.6 **Use of Competent Supervisors.** The Supplier shall ensure an adequate number of supervisors are provided on-site to supervise the Supplier's staff and subcontractors and that any supervisor appointed by the Supplier satisfies the definition of "competent" as prescribed by the OHSA.
- 5.7 **Use of Proper Equipment.** The Supplier shall provide all necessary equipment and personal safety devices required to provide the Services. The Supplier represents and warrants to OCWA that all such equipment is in good working order and has been maintained in accordance with the OHSA and that all employees and subcontractors of the Supplier who will be providing the Services have been trained on how to use the equipment in a safe manner.
- 5.8 **WSIB Clearance Certificate.** The Supplier is responsible for all costs associated with workplace accidents and all premiums or assessments owing to the Workplace Safety and Insurance Board (WSIB), or insurance company. The Supplier represents and warrants to OCWA that it has met and it shall continue to meet, all of its obligations under the *Workplace Safety and Insurance Act*. Prior to providing the Services, the Supplier shall provide OCWA with a WSIB Clearance Certificate confirming that the Supplier is registered with the WSIB and that the Supplier has met all reporting and payment obligations. OCWA will withhold payment of such sums of money sufficient to cover any default of the Supplier to the WSIB or insurance company for premiums or assessments and any costs arising from an accident for income replacement, medical aid or rehabilitation.
- 5.9 **Offences Under OHSA.** The Supplier represents and warrants to OCWA that it has never been convicted with an offence under the OHSA that has not been disclosed to OCWA in writing.
- 5.10 **Supplier's Health and Safety Program.** Prior to providing the Services pursuant to this Agreement, the Supplier shall provide the following information to the OCWA contact person:
- (a) a copy of the Supplier's policy as related to the Services provided pursuant to this Agreement, including identification and control of hazards associated with the provision of the Services;
  - (b) a list of any Ministry of Labour orders under which the Supplier is currently operating;

- (c) a list of the Supplier's staff (including subcontractors) that will be providing the Services and evidence of the training they have received (Form 1000, or any applicable successor Form);
- (d) a list of competent supervisory staff; and
- (e) any policies with respect to enforcement/discipline of the Occupational Health and Safety issues.

The Supplier acknowledges that in the event the Supplier is unable to provide the above information to OCWA or the information provided to OCWA is unsatisfactory to OCWA, OCWA will have the right to terminate this Agreement immediately.

**5.11 Pre-Start Meeting.** If applicable, prior to the Supplier providing any on-site Services, all staff of the Supplier and its subcontractors must attend a meeting with the on-site staff of OCWA to:

- (a) identify the Supplier's staff that will be attending the Facility (including the staff of any subcontractors);
- (b) review any hazards at the Facility and OCWA safety policies related to the Facility including sign-in procedures;
- (c) establish a contact person for communications purposes throughout the day;
- (d) identify sufficient and competent supervisory staff of the Supplier;
- (e) establish a communications protocol whereby the Supplier shall inform OCWA where work is going to be conducted each day; and
- (f) if a co-ordination document is required by the OHSA and its regulations, discuss the preparation of the co-ordination document to govern confined space entries.

**5.12 Accident Reporting.** In the event of (a) an accident causing death, (b) critical injury (as defined by O. Reg. 834, R.R.O. 1990, as amended), or (c) disabling injury to any employee of the Supplier or one of its subcontractors, the Supplier shall notify OCWA immediately and, within 24 hours of such event, provide OCWA with a detailed report which shall include the following information:

- (i) employer information, contact name, contact telephone number;
- (ii) description of the accident/incident (who, what, when, where, how);



- (iii) description of the injury;
  - (iv) recommendations to prevent a future occurrence; and
  - (v) confirmation that all legislative notification requirements have been met.
- 5.13 **Ministry of Labour Orders.** The Supplier shall immediately notify OCWA of, and provide OCWA with, any Ministry of Labour orders or charges issued to the Supplier in relation to the Services provided to this Agreement.
- 5.14 **Stop Work.** OCWA may stop the work of the Supplier or any subcontractor if a contravention of the OHSA is identified and there is an immediate danger to the health or safety of a worker. This direction will stand (at no additional cost to OCWA), until the Supplier addresses the contravention and reports back to OCWA.
- 5.15 **Equipment Lockout.** The Supplier is responsible for ensuring that all machinery/equipment worked on or used by the Supplier at the Facility is locked out, depressurized, cooled down and drained, as required and the Supplier shall follow any relevant safety procedures provided by OCWA in this regard.
- 5.16 **Review of OCWA Safety Manual.** Where applicable, the Supplier shall review appropriate sections of OCWA's Health and Safety Manual prior to providing the Services, in order to become acquainted with key safety procedures at the Facility. The Supplier shall ensure that all of the Supplier's employees, agents and subcontractors are also made aware of the provisions in the OCWA Safety Manual that are relevant to the Services supplied pursuant to the Agreement.

## **Article Six – Vendor Performance Framework**

- 6.1 **Vendor Performance Framework.** The Supplier must comply with the Supplier performance requirements set out in Schedule E. Throughout the Term, Supplier performance will be continually assessed by OCWA to ensure compliance with the Agreement.

## **Article Seven – Termination**

- 7.1 **Failure to Maintain Process Control.** Failure of the Supplier to perform as specified in Article 1 or as requested by an OCWA Representative may require OCWA to obtain alternative service arrangements in which case subsection 1.4(d) and paragraph will apply.
- 7.2 **Termination Without Notice.** OCWA may terminate this Agreement without notice to the Supplier upon any breach of this Agreement by the Supplier.
- 7.3 **Other Reasons.**

- a. This Agreement may be terminated at any time by the Supplier by giving 120 days notice to OCWA, and by OCWA by giving 30 days notice to the Supplier. If OCWA terminates this Agreement prior to its expiration, OCWA shall only be responsible for payment of that portion of the Payment reasonably incurred for the value of the work completed up to and including the date of any such termination.
- b. OCWA reserves the right to transfer this Agreement to another operator (and/or to the Municipality), without penalty.
- c. Should OCWA's operating agreement with the Municipality not be renewed, or should that agreement be terminated, OCWA may invoke either subsection 7.3(a) or 7.3(b).

### **Article Eight - General Provisions**

- 8.1 **Currency.** Except where otherwise expressly provided, all amounts in this Agreement are stated and shall be paid in Canadian currency.
- 8.2 **Governing Law.** This Agreement shall be governed by and construed in accordance with the laws of the Province of Ontario and the laws of Canada applicable therein.
- 8.3 **Enurement and Assignment.** This Agreement shall enure to the benefit of and be binding upon the parties and their administrators, successors and permitted assigns. The Supplier shall not assign this Agreement, or any part thereof, without the prior written approval of OCWA, which approval may be:
  - a. withheld by OCWA in its sole discretion; or
  - b. given subject to such terms and conditions as OCWA may require.
- 8.4 **Waiver.** No waiver of any breach of any provision of this Agreement will be effective or binding unless it is in writing and signed by the party purporting to give such waiver and, unless otherwise provided, will be limited to the specific breach waived. No delay or failure by either party in exercising any rights regarding the default by the other party shall diminish or prejudice the rights of the innocent party as to that or any other default.
- 8.5 **Further Assurances.** The Supplier and the Purchaser shall both execute and deliver such further instruments and do such further acts as may be required to implement the intent of this Agreement.

8.6 **Entire Agreement.** This Agreement includes the following attached Schedules:

Schedule A - Occupational Health and Safety Declaration

Schedule B - Deliverables and Products

Schedule C - The 'Prices'

Schedule D - Definitions

Schedule E – Vendor Performance Framework

Schedule F – Certificates of Insurance Coverage

and embodies the entire Agreement with regard to matters dealt with in this Agreement and supersedes any understanding or agreement, collateral, oral or otherwise, existing between the parties at the date of execution.

8.7 **Freedom of Information.** The Supplier understands and agrees that this Agreement and any materials or information provided to OCWA through the performance of the Services may be subject to the *Freedom of Information and Protection of Privacy Act*, R.S.O. 1990, c. F.31, as amended.

8.8 **Severability.** All paragraphs, terms and conditions of this Agreement are severable, and the invalidity, illegality, or unenforceability of any such paragraph, term or condition shall be deemed not to affect the validity, enforceability or legality of the remaining paragraphs, terms and conditions.

8.9 **Time.** Time shall be of the essence in this Agreement.

8.10 **Amendments.** No addition, deletion or modification to the provisions of this Agreement shall be effective unless it is in writing and duly executed on behalf of both Parties by their duly authorized representatives.

8.11 **Interpretation.**

a. In this Agreement, references to the singular shall be deemed to include the plural and the converse shall also apply, references to gender shall be deemed to include the masculine, feminine and neutral genders, references to persons shall include individuals, partnerships, associations, trusts, unincorporated organizations and corporations and the terms "herein", "hereof", "hereunder" and similar expressions shall be deemed to refer to this Agreement in its entirety without restrictions to any particular article, clause, subclause or other portion of this Agreement.

b. The headings preceding the provisions of this Agreement have been inserted for convenient reference only and shall not be deemed to affect the construction or interpretation of this Agreement.

8.12 **Survival.** All covenants, representations, warranties and indemnities of the Parties shall survive indefinitely the termination of this Agreement.

- 8.13 **Agreement to Govern.** If there is any inconsistency between this Agreement and any Schedule to this Agreement, this Agreement shall govern.
- 8.14 **Counterparts.** This Agreement may be executed in counterparts, each of which shall constitute an original and all of which taken together shall constitute one and the same instrument.
- 8.15 **Notices.**
- a. Any notice, or other communication required or permitted to be given under the Agreement by OCWA or the Supplier shall be in writing and shall be delivered in person, transmitted by fax or sent by registered mail, addressed as follows:
- i. If to the Supplier:  
YY  
Attention: YY  
Telephone: YY  
E-mail: YY
- and
- ii If to **OCWA**:  
**Ontario Clean Water Agency, Corporate Procurement**  
2085 Hurontario Street, 5<sup>th</sup> Floor,  
Mississauga, ON L5A 4G1  
Attention: YY  
Telephone: YY  
E-mail: [procurement@ocwa.com](mailto:procurement@ocwa.com)
- b. If delivered in person or transmitted by fax, any such notice or other communication shall be deemed to have been given and received on the day on which it was delivered or transmitted (or, if such day is not a Business Day, on the next following Business Day).
- c. If mailed, any such notice or other communication shall be deemed to have been given and received on the third Business Day following the date of mailing; provided, however, that if at the time of mailing or within three Business Days thereafter a labour dispute or other event occurs, which might reasonably be expected to disrupt the delivery of documents by mail, any notice or other communication made under this Agreement shall be delivered or transmitted by fax as provided in this Section.
- d. A party to this Agreement may change its address for the purpose of this Section by giving the other party notice of such change of address in the manner provided in this Section.
- 8.16 **Reference to Prior Agreement.** This Agreement supersedes and takes the place of all prior agreements entered into by the parties.

**IN WITNESS WHEREOF** OCWA and the Supplier have duly executed this Agreement.

**ONTARIO CLEAN WATER AGENCY / AGENCE ONTARIENNE DES EAUX**

\_\_\_\_\_  
Date of Signing

By: \_\_\_\_\_  
(Authorized Signing Officer)

\_\_\_\_\_  
Date of Signing

By: \_\_\_\_\_  
(Authorized Signing Officer)

**[Draft – Not To Be Completed By Vendor]**

\_\_\_\_\_  
Date of Signing

By: \_\_\_\_\_  
(Authorized Signing Officer)

\_\_\_\_\_  
Date of Signing

By: \_\_\_\_\_  
(Authorized Signing Officer)

**[DRAFT – Sample Schedules to be attached to Final Agreement]**

**Schedule A**

Occupational Health and Safety Declaration

**Schedule B**

Deliverables and Products

**Schedule C**

The “Prices”

**Schedule D**

Definitions

**Schedule F**

Certificates of Insurance Coverage

## **Schedule E**

### **Vendor Performance Framework**

To ensure the successful outcome of the Deliverables, OCWA will be monitoring and reporting on Vendor performance both during the Term and at the completion of Deliverables. Vendor performance results will be reviewed by OCWA jointly with the Vendor providing opportunities for improvement and allowing both Parties to begin corrective action, if necessary.

Vendor performance will be reviewed by OCWA throughout the Term and feedback will be provided to the Vendor.

#### **1. Key Performance Indicators (KPI's)**

The Vendor is expected to meet or exceed the following KPI's during the Term:

Examples:

1. Contract Administration:
  - A. Vendor compliance with agreed invoicing requirements (e.g. timeliness of invoicing and the accuracy of invoicing against agreed contract pricing).
  - B. Vendor compliance with agreed requirements (e.g. Providing updated Certificates of Insurance, tax compliance, other documents that conform with contract requirements.).
2. Contract Performance:
  - A. Customer service provided to the End User.
  - B. Compliance with delivery of goods and services against contract requirements. (e.g. timeliness and accuracy).
  - C. Compliance with any other contract performance standards specific to the contract.
  - D. Overall performance of the Vendor.

#### **2. Reporting**

If there is information or data associated with the Deliverables and/or the KPI's that OCWA does not have, or is not able to collect, that will allow OCWA to measure or calculate the required KPI's, the Vendor will provide OCWA with this information or data, as applicable, if the Vendor is able to provide this information or data.

#### **3. Performance Feedback**

OCWA will utilize a Vendor Performance Management Form via online survey to track the Vendor's performance during the Term.

**a) Vendor Performance Review Meeting**

During the Term, OCWA will meet with the Vendor to discuss:

- i. The Vendor's performance generally;
- ii. The Vendor's performance against the agreed-upon KPI's;
- iii. OCWA's assessment of the Vendor's compliance with the KPI's, and;
- iv. OCWA's overall rating of the Vendor to the date of the meeting.

During these meetings, the Vendor will have an opportunity to ask questions about OCWA's assessment, to comment on their own performance, and to respond to OCWA's assessment. The Vendor's feedback will be retained by OCWA. As a result of Vendor feedback, OCWA may adjust scores or assessment accordingly, ensuring the rationale for the change is noted.

Minutes of these meetings will be kept by OCWA.

**b) Vendor Performance Review Meetings Schedule**

Vendor performance review meetings will be scheduled, at the sole discretion of OCWA, close to or at the completion of the Deliverables, or at major milestones, as set out below:

| Description of Meeting                                                                                        | Anticipated Meeting Date                          |
|---------------------------------------------------------------------------------------------------------------|---------------------------------------------------|
| e.g. Review of XX (insert Deliverables milestone)                                                             | E.g. Within XX months of Agreement effective date |
| e.g. Review of completed Deliverables                                                                         | e.g. Minimum 1 week prior to delivery             |
| Review meeting to discuss the OCWA Vendor Performance Management Questionnaire/Overall Rating with the Vendor | After completion of Deliverables                  |



## Appendix B – Form of Offer

**To the Ontario Clean Water Agency:**

|                                                                                                                                                                                                                                                                                                                                                                                             |                                    |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------|
| <b>Page 1 of 4</b>                                                                                                                                                                                                                                                                                                                                                                          |                                    |
| <b>This Form of Offer must be signed and all pages of the original included with the Bid</b>                                                                                                                                                                                                                                                                                                |                                    |
| To the Ontario Clean Water Agency:                                                                                                                                                                                                                                                                                                                                                          |                                    |
| 1. Bidder Information                                                                                                                                                                                                                                                                                                                                                                       |                                    |
| (a) The full legal name of the Bidder is:                                                                                                                                                                                                                                                                                                                                                   | <b>(Bidder to insert response)</b> |
| (b) Any other registered business name under which the Bidder carries on business is:                                                                                                                                                                                                                                                                                                       | <b>(Bidder to insert response)</b> |
| (c) The jurisdiction under which the Bidder is formed is:                                                                                                                                                                                                                                                                                                                                   | <b>(Bidder to insert response)</b> |
| (d) The name, address, telephone, facsimile number and email address of the contact person for the Bidder:                                                                                                                                                                                                                                                                                  | <b>(Bidder to insert response)</b> |
| (e) The name, address, telephone, facsimile number and e-mail address of the contact person for the company security officer for the Bidder:                                                                                                                                                                                                                                                | <b>(Bidder to insert response)</b> |
| (f) Indicate whether the Bidder is an individual, a sole proprietorship, a corporation or a partnership:                                                                                                                                                                                                                                                                                    | <b>(Bidder to insert response)</b> |
| 2. Offer<br>The Bidder has carefully examined the RFB documents and has a clear and comprehensive knowledge of the Deliverables required under the RFB. By submitting the Bid, the Bidder agrees and consents to the terms, conditions and provisions of the RFB, including the Agreement, and offers to provide the Deliverables in accordance with the rates set out in the Pricing Form. |                                    |

**Appendix B - Form of Offer**  
**Page 2 of 4**

**3. Mandatory Forms**

The Bidder encloses as part of the Bid, the following mandatory forms.

| <b>MANDATORY FORMS:</b>                                                                                                                                                                          | <b>Yes</b> | <b>Page</b> |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|-------------|
| Form of Offer (Appendix B)                                                                                                                                                                       |            |             |
| Rate Bid Form (Appendix C)                                                                                                                                                                       |            |             |
| Occupational Health and Safety Declaration (Appendix D)                                                                                                                                          |            |             |
| Mandatory Items (Appendix E)                                                                                                                                                                     |            |             |
| Experience and Qualifications (Appendix F)                                                                                                                                                       |            |             |
| Notice to Bidders: There may be Mandatory Forms in this RFB other than those set out above. See the Mandatory Requirements section of this RFB for a complete listing of Mandatory Requirements. |            |             |

**4. Addenda**

The Bidder has read and accepted all addenda issued by OCWA to date. We understand that the onus remains on us to have made any necessary amendments to our Bid based on the addenda.

**5. Conflict of Interest**

Prior to completing this portion of the Form of Offer, Bidders should refer to the definition of Conflict of Interest set out in the Agreement, both definition part (a) and (b).

**If the boxes in this section are left blank, the Bidder will be deemed to declare that it had no foreseeable Conflict of Interest (either definition part (a) or (b)) in performing the contractual obligations contemplated in the RFB. Otherwise, if either or both of the following statements apply, check the appropriate box.**

☐

Part (a) of definition: The Bidder declares that there is an actual or potential unfair advantage relating to the preparation and submission of its Bid.

☐

Part (b) of definition: The Bidder foresees an actual or potential Conflict of Interest in performing the contractual obligations contemplated in the RFB.

**If the Bidder declares an actual or potential Conflict of Interest by marking either of the boxes, the Bidder must describe it in the following space provided.**

**(Bidder to insert response, if applicable)**

**Appendix B - Form of Offer**  
**Page 3 of 4**

In addition to the preceding declarations, the Bidder must complete the following which relates to potential Conflict of Interest:

The following individuals, as employees, advisors, or in any other capacity (a) participated in the preparation of our Bid; and (b) were employees of the Ontario Public Service (“OPS”) and have ceased that employment prior to the RFB Closing Date:

|                                                                                         |                                            |
|-----------------------------------------------------------------------------------------|--------------------------------------------|
| <b>Name of Individual:</b>                                                              | (Bidder to insert response, if applicable) |
| <b>Job Classification (of last position within OPS):</b>                                | (Bidder to insert response, if applicable) |
| <b>Ministry/Agency (where last employed with OPS):</b>                                  | (Bidder to insert response, if applicable) |
| <b>Last Date of Employment with OPS:</b>                                                | (Bidder to insert response, if applicable) |
| <b>Name of Last Supervisor with OPS:</b>                                                | (Bidder to insert response, if applicable) |
| <b>Brief Description of Individual’s Job Functions (at last position with OPS):</b>     | (Bidder to insert response, if applicable) |
| <b>Brief Description of Nature of Individual’s Participation in Preparation of Bid:</b> | (Bidder to insert response, if applicable) |

**(Repeat for each identified individual)**

The Bidder agrees, upon request, to provide OCWA with additional information from each individual identified in the preceding form prescribed by OCWA. OCWA will assess this information and may, at its sole and absolute discretion, conclude that an unfair advantage or Conflict of Interest arises and may, in addition to any other remedies available at law or in equity, disqualify the Bid submitted by the Bidder.

**6. Disclosure of Information**

The Bidder hereby agrees that any information provided in this Bid, even if it is identified as being supplied in confidence, may be disclosed where required by law or if required by order of a court or tribunal. The Bidder hereby consents to the disclosure, on a confidential basis, of this Bid by OCWA to OCWA’s advisors retained for the purpose of evaluating or participating in the evaluation of this Bid.

**7. Proof of Insurance**

By signing the Form of Offer, the Bidder agrees, if selected, that it has verified its capability to do so and will provide proof of insurance coverage as set out in the Agreement.

**Appendix B – Form of Offer**  
**Page 4 of 4**

**8. Tax Compliance Declaration**

The Ontario Government expects all Vendors meet their Ontario tax obligations on a timely basis. In this regard, Bidders are advised that their Ontario tax obligations, if any, must be in good standing in order to be considered for a contract award. In order to be considered for a contract award, the Bidder must submit the following tax compliance status statement and the following consent to disclosure:

**Declaration**

I/WE hereby certify that (insert legal name of Bidder) \_\_\_\_\_ (the "Bidder") at the time of submitting its Bid, is in full compliance with all applicable Ontario tax statutes, whether administered by the Ontario Ministry of Finance or by the Canada Revenue Agency, and that, in particular, all returns required to be filed have been filed and all taxes due and payable under those statutes have been paid or satisfactory arrangements for their payment have been made and maintained; or the Bidder will take all necessary steps prior to being considered for contract award in order to be in full compliance with all applicable Ontario tax statutes.

**(Please check applicable box)** The Bidder ☐ is / ☐ is not a corporation subject to Ontario corporate tax under the *Taxation Act, 2007* (Ontario).

**(Please insert Bidder's Business Number)** \_\_\_\_\_

**Consent to Disclosure**

**The Bidder consents to the Ontario Clean Water Agency ("Requesting Ministry") releasing the taxpayer information to the Ministry of Finance as necessary for the purpose of verifying the Bidder's compliance with Ontario tax statutes.**

The Bidder consents to the Ministry of Finance releasing taxpayer information to the Requesting Ministry as necessary for the purpose of verifying the Bidder's compliance with Ontario tax statutes.

**9. Execution of Agreement**

The Bidder understands that in the event its Bid is selected by OCWA, in whole or in part, the Bidder agrees to finalize and execute the agreement in the form set out in the Agreement attached to this RFB and in accordance with the terms of this RFB.

**Initial the box to indicate that the Form of Agreement in Appendix A been reviewed and accepted.**

Initial here

**Dated at** \_\_\_\_\_ **this** \_\_\_\_\_ **day of** \_\_\_\_\_ **20**\_\_

**(Signature of Authorized Signing Officer)**

**(Signature of Witness)**

**(Print Name)**

**(Name of Witness)**

**(Print Title)**

I have authority to bind the Bidder

## Appendix C - Rate Bid Form

Prices shall be inclusive of all labour, materials and equipment required to complete the Deliverables, as described in Part 2 of the RFB, including applicable taxes, overhead charges or other charges, but not including HST.

When applicable, Bidders are not permitted to include markups in anticipation of tariffs on the Rate Bid Form. OCWA will reimburse the successful Bidder for actual tariffs imposed by the Canadian or United States government on goods after the submission of a Bid. Tariff charges will be reimbursed at cost by OCWA, upon written proof of said tariffs.

**Bidder:** \_\_\_\_\_

| Facility           | Rate Bid Form #1:<br>Lawn Care Price Per Season |                      |
|--------------------|-------------------------------------------------|----------------------|
|                    | May 1 – Oct 31, 2026                            | May 1 – Oct 31, 2027 |
| Ayr WWTP           | \$                                              | \$                   |
| Conestoga WWTP     | \$                                              | \$                   |
| Elmira WWTP        | \$                                              | \$                   |
| Foxboro WWTP       | \$                                              | \$                   |
| Galt WWTP          | \$                                              | \$                   |
| Heidelberg WWTP    | \$                                              | \$                   |
| Hespeler WWTP      | \$                                              | \$                   |
| Kitchener WWTP     | \$                                              | \$                   |
| New Hamburg WWTP   | \$                                              | \$                   |
| Preston WWTP       | \$                                              | \$                   |
| St. Jacobs WWTP    | \$                                              | \$                   |
| Waterloo WWTP      | \$                                              | \$                   |
| Wellesley WWTP     | \$                                              | \$                   |
| Baden PS           | \$                                              | \$                   |
| Bridgeport P.S.    | \$                                              | \$                   |
| Manitou T.S.       | \$                                              | \$                   |
| Morningside P.S.   | \$                                              | \$                   |
| Nith River P.S.    | \$                                              | \$                   |
| Rose P.S.          | \$                                              | \$                   |
| Spring Valley P.S. | \$                                              | \$                   |
| Swan Street PS     | \$                                              | \$                   |

|                                                                    |    |    |
|--------------------------------------------------------------------|----|----|
| <b>Total Lawn Care Quote<br/>for all Facilities per<br/>season</b> | \$ | \$ |
|--------------------------------------------------------------------|----|----|

Do not include HST in the Bid rates.

| <b>Facility</b>                                                        | <b>Rate Bid Form #2<br/>Winter Snow Clearing and Salting Price per Facility<br/>per Season</b> |                                       |
|------------------------------------------------------------------------|------------------------------------------------------------------------------------------------|---------------------------------------|
|                                                                        | <b>Nov 1, 2026 – Apr 30,<br/>2027</b>                                                          | <b>Nov 1, 2027 – Apr 30,<br/>2028</b> |
| Ayr WWTP                                                               | \$                                                                                             | \$                                    |
| Conestoga WWTP                                                         | \$                                                                                             | \$                                    |
| Elmira WWTP                                                            | \$                                                                                             | \$                                    |
| Foxboro WWTP                                                           | \$                                                                                             | \$                                    |
| Galt WWTP                                                              | \$                                                                                             | \$                                    |
| Heidelberg WWTP                                                        | \$                                                                                             | \$                                    |
| Hespeler WWTP                                                          | \$                                                                                             | \$                                    |
| Kitchener WWTP                                                         | \$                                                                                             | \$                                    |
| New Hamburg WWTP                                                       | \$                                                                                             | \$                                    |
| Preston WWTP                                                           | \$                                                                                             | \$                                    |
| St. Jacobs WWTP                                                        | \$                                                                                             | \$                                    |
| Waterloo WWTP                                                          | \$                                                                                             | \$                                    |
| Wellesley WWTP                                                         | \$                                                                                             | \$                                    |
| Baden P.S.                                                             | \$                                                                                             | \$                                    |
| Bridgeport P.S.                                                        | \$                                                                                             | \$                                    |
| Manitou T.S.                                                           | \$                                                                                             | \$                                    |
| Morningside P.S.                                                       | \$                                                                                             | \$                                    |
| Nith River P.S.                                                        | \$                                                                                             | \$                                    |
| Rose P.S.                                                              | \$                                                                                             | \$                                    |
| Spring Valley P.S                                                      | \$                                                                                             | \$                                    |
| Swan Street P.S.                                                       | \$                                                                                             | \$                                    |
| <b>Total snow removal<br/>quote for all Facilities<br/>per season:</b> | \$                                                                                             | \$                                    |

Do not include HST in the Bid rates.

**List of Suppliers And Subcontractors**

Include a complete list of suppliers and subcontractors that will be required to complete the Deliverables as defined in Section 2. Any changes to this list must be pre-approved by the OCWA Representative. State "Own Forces" if a subcontractor will not be required.

| <b>Supplier and/or Subcontractor</b> | <b>Address</b> | <b>Trade</b> |
|--------------------------------------|----------------|--------------|
| 1.                                   |                |              |
| 2.                                   |                |              |
| 3.                                   |                |              |

## Appendix D – Occupational Health and Safety Declaration

I, on behalf of \_\_\_\_\_ certify the following:  
(legal name of supplier)

- a) The Bidder agrees that it and any proposed subcontractors each have a written occupational health and safety policy and will maintain a program to implement that policy as required by clause 25(2)(j) of the *Occupational Health and Safety Act, R.S.O. 1990, c.0.1* (OHSA) as amended.
- b) With respect to the services being offered in this Bid, the Bidder and its proposed subcontractors acknowledge the responsibility to, and shall:
- i. fulfil all of the “employer” obligations under OHSA and ensure that all work is carried out in accordance with OHSA and its regulations
  - ii. appoint and ensure an adequate number of supervisors are provided for the work and that they all satisfy the definition of “competent” as prescribed in OHSA
  - iii. identify any hazards associated with the work, assess the risks and develop appropriate control measures to protect worker safety
  - iv. provide information and instruction to all employees to ensure they are informed of the hazards inherent to the work and understand the procedures for minimizing the risk of injury or illness
  - v. ensure that workers and supervisors have completed mandatory health and safety awareness training in accordance with O. Reg. 297/13
  - vi. notify OCWA of the occurrence of all work-related health and safety incidents and Ministry of Labour investigations or orders
  - vii. ensure appropriate emergency management procedures and response in the event of an accident or fire, including an emergency evacuation plan that accommodates for persons with disabilities (in accordance with section 27 of the Integrated Accessibility Standard Regulation, Accessibility for Ontarians with Disabilities Act, 2005.)
- c) The Bidder agrees that any and all equipment used in connection with the Deliverables under the Contract is at all times properly and safely maintained by duly qualified personnel and is at all times in good working order.

The Bidder and its proposed subcontractors agree to take every precaution reasonable in the circumstances for the protection of worker health and safety, as required by the OHSA.

Dated at \_\_\_\_\_ this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_.

\_\_\_\_\_ (insert legal name of supplier)

Per: \_\_\_\_\_ (Authorized Signing Officer)

Name: \_\_\_\_\_ Title: \_\_\_\_\_



## Appendix E – Mandatory Items

This Appendix sets out the mandatory requirements for the delivery of the Deliverables.

As set out in Section 3 of the RFB, each Bid should include a Mandatory Requirements Form completed according to the instructions below.

Bidders shall respond with a yes or no to all questions and type responses directly on the electronic forms provided below. The Comments column is optional. However, Bidders are encouraged to provide all the necessary information required for a thorough assessment to be made.

| No. | Requirement                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | Compliance<br>Yes / No | Comments |
|-----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|----------|
| 1.  | <p>Bidders must carry the minimum required levels of insurance coverage. Please refer to Section 4.1 of the Form of Agreement for additional info.</p> <p>Please confirm that you have forwarded the required insurance coverage from Appendix A Form of Agreement for this RFB to your insurance Broker by providing the following information:</p> <p>Name of Insurance Broker/Agency:</p> <p>_____</p> <p>Date that you reviewed the required insurance coverage with your broker/agent:</p> <p>_____</p> |                        |          |
| 2.  | <p>Confirm that you are eligible to obtain the required insurance, and that any <b><u>costs</u></b> related to the insurance have been taken into consideration while preparing this Bid.</p> <p>If the successful Bidder is unable to secure the required insurance coverage within 15 days of award notification, OCWA has the reserved right to move to the next highest rated Bidder.</p>                                                                                                                |                        |          |

| No. | Requirement                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        | Compliance<br>Yes / No | Comments |
|-----|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|----------|
| 3.  | All staff employed by the successful Bidder who will be working on the contract must be covered by WSIB or Employers Liability Insurance. Current copy of WSIB clearance certificate or employers' liability insurance certificate will be provided upon notification of contract award.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |                        |          |
| 4.  | <p>For the purpose of this RFB, the definition for "Ontario Business" is defined as:<br/>A business that either has its headquarters or main office in Ontario, or has at least 250 full-time employees in Ontario at the time of this RFB.</p> <p><input type="checkbox"/> Please indicate if your organization is an "Ontario Business" as defined above.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |                        |          |
| 5.  | <p>The Bidder is <b>not</b> a U.S. Business.</p> <p><input type="checkbox"/> Yes</p> <p><input type="checkbox"/> No</p> <p>where 'U.S. Business' means a supplier, manufacturer, service provider, or distributor of any business structure (including a sole proprietorship, partnership, corporation, or other business structure) that (i) has its headquarters or main office located in the U.S., and (ii) has fewer than 250 full-time employees in Canada at the time of the applicable procurement process.</p> <p>If a Bidder is a subsidiary of another corporation, part 1 of the definition above is met if that Bidder is controlled by a corporation that has its headquarters or main office located in the U.S.</p> <p>If the Bidder has not demonstrated eligibility with a "Yes" response, OCWA reserves the right to disqualify the Bidder.</p> |                        |          |

| No. | Requirement                                                                                                 | Compliance<br>Yes / No | Comments |
|-----|-------------------------------------------------------------------------------------------------------------|------------------------|----------|
| 6.  | Review and acceptance of KPI's in Appendix A (Form of Agreement), Schedule E (Vendor Performance Framework) |                        |          |
| 7.  | Attendance at the mandatory site tour.                                                                      |                        |          |

## Appendix F – Rated Requirements

Bidder's responses to the following service requirements will be evaluated and scored as set out in Section 3 of this RFB.

Please ensure that the relevant sections within your Bid response are appropriately noted for easy reference. Bidders are advised to use this format to respond to the Rated questions as stated below and please **limit your responses to a total of no more than 7 pages.**

| Question/<br>Answer # |                                                                                                                                                                                                                                                                                              |
|-----------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Q# 1                  | Provide a brief description of your organization, including company size, years of service, number of employees and any other relevant information. (Points 5)                                                                                                                               |
| A# 1                  |                                                                                                                                                                                                                                                                                              |
| Q# 2                  | Give a description of the services that your organization has previously and/or is currently delivering, with an emphasis on experience relevant to the Deliverables. (Points 10)                                                                                                            |
| A# 2                  |                                                                                                                                                                                                                                                                                              |
| Q# 3                  | List the roles and responsibilities of your organization and any of its agents, employees and sub-contractors who will be involved in providing the Deliverables, together with the identity of those who will be performing those roles and their relevant respective expertise. (Points 5) |
| A# 3                  |                                                                                                                                                                                                                                                                                              |
| Q# 4                  | Provide a description of how your organization will provide the Deliverables, which should include a work plan and incorporate an organizational chart indicating how you intend to structure your working relationship with OCWA. (Points 15)                                               |
| A# 4                  |                                                                                                                                                                                                                                                                                              |
| Q# 5                  | Provide a complete listing of equipment (including model and year) that will be used to successfully complete the obligations in this RFB. Certification documents may be requested for equipment. (Points 0)                                                                                |
| A# 5                  |                                                                                                                                                                                                                                                                                              |

|       |                                                                                                                                                                                                                                                                                                                                  |
|-------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Q# 6  | Describe how your organization will meet the defined winter maintenance timelines and how you will support OCWA during major storm events. (Points 10)                                                                                                                                                                           |
| A# 6  |                                                                                                                                                                                                                                                                                                                                  |
| Q# 7  | Describe your organization's ability to apply anti-ice salt brine, and best practices for balancing brine with dry salt applications to reduce groundwater contamination while maintaining safe roads. (Points 5)                                                                                                                |
| A# 7  |                                                                                                                                                                                                                                                                                                                                  |
| Q# 8  | Describe the equipment available on your fleet to control and track salt usage. Does your organization make use of closed loop salt controllers? (Points 5)                                                                                                                                                                      |
| A# 8  |                                                                                                                                                                                                                                                                                                                                  |
| Q# 9  | Does your organization meet the Region of Waterloo's "Smart about Salt" Certification Standard? (Points 5)                                                                                                                                                                                                                       |
| A# 9  |                                                                                                                                                                                                                                                                                                                                  |
| Q# 10 | Local Benefits: Describe how and when your organization will use the local workforce, local vendors, local manufacturers, local contractors, and local apprentices/trainees to achieve the project goals or produce the requested goods. (Points 10)                                                                             |
| A# 10 |                                                                                                                                                                                                                                                                                                                                  |
| Q# 11 | Does your organization have a program that benefits local Ontario communities? If so, please describe how your organization benefits local Ontario communities. (Points 5)                                                                                                                                                       |
| A# 11 |                                                                                                                                                                                                                                                                                                                                  |
| Q# 12 | Experience in Ontario: Does your organization have experience in successfully providing the Deliverables in the province of Ontario?                                                                                                                                                                                             |
| A# 13 | <p>Select one:</p> <p><input type="checkbox"/> Yes, we have experience in successfully providing the Deliverables to clients in the province of Ontario – 5 points</p> <p><input type="checkbox"/> No, we do not have experience in successfully providing the Deliverables to clients in the province of Ontario – 0 points</p> |

## Appendix G – Reference Form

Each Bidder is requested to provide three references from clients for whom the Bidder has provided the similar or related Deliverables as those described in Part 2 of this RFB within the past five years.

OCWA, in its sole discretion, may confirm the Bidder's experience and/or ability to provide the Deliverables required and described in its Bid by checking the Bidder's references and the provision of the references by the Bidder is deemed to be consent to such contact with the referees.

OCWA reserves the right to revisit the Bidder's scores in the experience and qualifications based on information learned during reference checks, should they reveal that there is inconsistency between the Bidder's answers to the experience and qualifications and the results of the reference check.

Bidders must provide their reference information by filling in the table(s) below:

### Reference #1

|                                               |  |
|-----------------------------------------------|--|
| Company Name:                                 |  |
| Company Address:                              |  |
| Contact Name:                                 |  |
| Contact Title:                                |  |
| Contact Telephone Number:                     |  |
| Contact E-mail Address:                       |  |
| Dates Work Undertaken:                        |  |
| Number of Bidder Resources Supporting project |  |
| Nature of Deliverables:                       |  |

### Reference #2

|                           |  |
|---------------------------|--|
| Company Name:             |  |
| Company Address:          |  |
| Contact Name:             |  |
| Contact Title:            |  |
| Contact Telephone Number: |  |
| Contact E-mail Address:   |  |

|                                                  |  |
|--------------------------------------------------|--|
| Dates Work Undertaken:                           |  |
| Number of Bidder Resources<br>Supporting project |  |
| Nature of Deliverables:                          |  |

**Reference #3**

|                                                  |  |
|--------------------------------------------------|--|
| Company Name:                                    |  |
| Company Address:                                 |  |
| Contact Name:                                    |  |
| Contact Title:                                   |  |
| Contact Telephone Number:                        |  |
| Contact E-mail Address:                          |  |
| Dates Work Undertaken:                           |  |
| Number of Bidder Resources<br>Supporting project |  |
| Nature of Deliverables:                          |  |